

Contract for the sale and purchase of land 2026 edition

TERM	MEANING OF TERM	NSW DAN:
vendor's agent	Ray White Park Coast East 126 Avoca Street, Randwick NSW 2031	phone: 9381 7050 email: justin.bell@raywhite.com ref: Justin Bell
co-agent		
vendor	WALKER AVE PROJECTS PTY LTD ACN 681 293 372 ATF Walker Ave Projects Unit Trust	
vendor's solicitor	George Xylas Solicitor 335A Gardeners Rd, Rosebery NSW 2018	phone: 02 9693 5704 email: george@gxlaw.com.au
date for completion	42nd day after the contract date	(clause 15)
land (address, plan details and title reference)	8 WALKER AVE MASCOT NSW 2020 LOT 1 DEPOSITED PLAN 536401 Folio Identifier 1/536401	
	☒ VACANT POSSESSION ☐ subject to existing tenancies	
improvements	☒ HOUSE ☐ garage ☐ carport ☐ home unit ☐ carspace ☐ storage space ☐ none ☐ other:	
attached copies	☐ documents in the List of Documents as marked or as numbered: ☐ other documents:	

A real estate agent is permitted by *legislation* to fill up the items in this box in a sale of residential property.

inclusions	☐ air conditioning ☐ curtains ☐ insect screens ☐ range hood ☐ blinds ☐ dishwasher ☐ internet/TV receiver ☐ solar panels ☐ built-in wardrobes ☐ EV charger ☒ light fittings ☐ solar power battery ☐ ceiling fans ☒ fixed floor coverings ☐ pool equipment ☒ stove ☐ clothes line ☐ other:
exclusions	
purchaser	
purchaser's solicitor	
price	
deposit	
balance	(10% of the price, unless otherwise stated)
contract date	(if not stated, the date this contract was made)

Where there is more than one purchaser ☐ JOINT TENANTS
☐ tenants in common ☐ in unequal shares, specify:

GST AMOUNT (optional) The price includes GST of: \$

buyer's agent

Note: Clause 20.15 provides "Where this contract provides for choices, a choice in BLOCK CAPITALS applies unless a different choice is marked."

SIGNING PAGE

VENDOR	PURCHASER
Signed by _____ Vendor _____ Vendor	Signed by _____ Purchaser _____ Purchaser
VENDOR (COMPANY)	PURCHASER (COMPANY)
Signed by WALKER AVE PROJECTS PTY LTD ACN 681 293 372 in accordance with s127(1) of the Corporations Act 2001 by the authorised person(s) whose signature(s) appear(s) below: _____ Signature of authorised person _____ Signature of authorised person <u>HUSSEIN CHALICH</u> _____ Name of authorised person _____ Name of authorised person <u>SOLE</u> <u>DIRECTOR/SECRETARY</u> _____ Office held _____ Office held	Signed by in accordance with s127(1) of the Corporations Act 2001 by the authorised person(s) whose signature(s) appear(s) below: _____ Signature of authorised person _____ Signature of authorised person _____ Name of authorised person _____ Name of authorised person _____ Office held _____ Office held

ChoicesVendor agrees to accept a **deposit-bond**☐ NO ☐ yes**Nominated Electronic Lodgment Network (ELN)** (clause 4)

PEXA

Manual transaction (clause 30)☐ NO ☐ yes

(if yes, vendor must provide further details, including any applicable exemption, in the space below):

Tax information (the parties promise this is correct as far as each party is aware)

Land tax is adjustable

☐ NO ☒ yes

GST: Taxable supply

☐ NO ☒ yes in full ☐ yes to an extent

Margin scheme will be used in making the taxable supply

☐ NO ☒ yes

This sale is not a taxable supply because (one or more of the following may apply) the sale is:

- ☐ not made in the course or furtherance of an enterprise that the vendor carries on (section 9-5(b))
- ☐ by a vendor who is neither registered nor required to be registered for GST (section 9-5(d))
- ☐ GST-free because the sale is the supply of a going concern under section 38-325
- ☐ GST-free because the sale is subdivided farm land or farm land supplied for farming under Subdivision 38-O
- ☐ input taxed because the sale is of eligible residential premises (sections 40-65, 40-75(2) and 195-1)

Purchaser must make an *GSTRW payment*☐ NO ☒ yes (if yes, vendor must provide

(GST residential withholding payment)

details)

If the details below are not fully completed at the contract date, the vendor must provide all these details in a separate notice at least 7 days before the date for completion.

GSTRW payment (GST residential withholding payment) – details

Frequently the supplier will be the vendor. However, sometimes further information will be required as to which entity is liable for GST, for example, if the supplier is a partnership, a trust, part of a GST group or a participant in a GST joint venture.

Supplier's name:

Supplier's ABN:

Supplier's GST branch number (if applicable):

Supplier's business address:

Supplier's representative:

Supplier's contact phone number:

Supplier's proportion of *GSTRW payment*:**If more than one supplier, provide the above details for each supplier.**Amount purchaser must pay – price multiplied by the *GSTRW rate* (residential withholding rate): \$Amount must be paid: ☐ AT COMPLETION ☐ at another time (specify):Is any of the consideration not expressed as an amount in money? ☐ NO ☐ yes

If "yes", the GST inclusive market value of the non-monetary consideration: \$

Other details (including those required by regulation or the ATO forms):

List of Documents

General	Strata or community title (clause 23 of the contract)
☒ 1 property certificate for the land ☐ 2 plan of the land ☐ 3 unregistered plan of the land ☐ 4 plan of land to be subdivided ☐ 5 document that is to be lodged with a relevant plan ☒ 6 section 10.7(2) planning certificate under Environmental Planning and Assessment Act 1979 ☐ 7 additional information included in that certificate under section 10.7(5) ☒ 8 sewerage infrastructure location diagram (service location print) ☒ 9 sewer lines location diagram (sewer service diagram) ☐ 10 document that created or may have created an easement, profit à prendre, restriction on use or positive covenant disclosed in this contract ☐ 11 <i>planning agreement</i> ☐ 12 section 88G certificate (positive covenant) ☐ 13 survey report ☐ 14 building information certificate or building certificate given under <i>legislation</i> ☒ 15 occupation certificate ☐ 16 lease (with every relevant memorandum or variation) ☐ 17 other document relevant to tenancies ☐ 18 licence benefiting the land ☐ 19 old system document ☐ 20 Crown purchase statement of account ☐ 21 building management statement ☐ 22 form of requisitions ☐ 23 <i>clearance certificate</i> ☐ 24 land tax certificate	☐ 33 property certificate for strata common property ☐ 34 plan creating strata common property ☐ 35 strata by-laws ☐ 36 strata development contract ☐ 37 strata management statement ☐ 38 strata renewal proposal ☐ 39 strata renewal plan ☐ 40 leasehold strata - lease of lot and common property ☐ 41 property certificate for neighbourhood property ☐ 42 plan creating neighbourhood property ☐ 43 neighbourhood development contract ☐ 44 neighbourhood management statement ☐ 45 property certificate for precinct property ☐ 46 plan creating precinct property ☐ 47 precinct development contract ☐ 48 precinct management statement ☐ 49 property certificate for community property ☐ 50 plan creating community property ☐ 51 community development contract ☐ 52 community management statement ☐ 53 document disclosing a change of by-laws ☐ 54 document disclosing a change in a development contract or management statement ☐ 55 document disclosing a change in boundaries ☐ 56 information certificate (strata) ☐ 57 information certificate (association) ☐ 58 document relevant to an exclusive supply network ☐ 59 disclosure statement - off the plan contract ☐ 60 other document relevant to the off the plan contract Other ☐ 61
Home Building Act 1989 ☐ 25 insurance certificate ☐ 26 brochure or warning ☐ 27 evidence of alternative indemnity cover Swimming Pools Act 1992 ☐ 28 certificate of compliance ☒ 29 evidence of registration ☒ 30 relevant occupation certificate ☐ 31 certificate of non-compliance ☐ 32 detailed reasons of non-compliance	

HOLDER OF STRATA OR COMMUNITY SCHEME RECORDS – Name, address, email address and telephone number

CERTIFICATE

I,

of

certify as follows:

- 1 I am a solicitor currently admitted to practice in New South Wales.
- 2 I am giving this Certificate in accordance with Section 66W of the Conveyancing Act, 1919 with reference to the Contract (in this contract referred to as "the Contract") for the sale of property known as: 8 Walker Avenue Mascot (herein referred to as "the Property"), from: Walker Ave Projects Pty Ltd ACN 681 293 372 as trustee for Walker Ave Projects Unit Trust (herein referred to as "the Vendor"),
to:
(herein referred to as "the Purchaser"), in order that there is no cooling off period in relation to the Contract.
- 3 I do not act for the Vendor and I am not employed in the legal practice of a solicitor acting for the Vendor nor am I a member or employee of the firm of which a solicitor acting for the Vendor is a member of or employee.
- 4 I have explained to the Purchaser:
 - (a) The effect of the Contract for the purchase of the Property;
 - (b) The nature of this Certificate;
 - (c) The effect of giving this Certificate to the Vendor, that is that there is no cooling off period in relation to the Contract.

DATED:

2026

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SOLICITOR FOR THE PURCHASER

IMPORTANT NOTICE TO VENDORS AND PURCHASERS

Before signing this contract you should ensure that you understand your rights and obligations, some of which are not written in this contract but are implied by law.

WARNING—SMOKE ALARMS

The owners of certain types of buildings and strata lots must have smoke alarms, or in certain cases heat alarms, installed in the building or lot in accordance with regulations under the *Environmental Planning and Assessment Act 1979*. It is an offence not to comply. It is also an offence to remove or interfere with a smoke alarm or heat alarm. Penalties apply.

WARNING—LOOSE-FILL ASBESTOS INSULATION

Before purchasing land that includes residential premises, within the meaning of the *Home Building Act 1989*, Part 8, Division 1A, built before 1985, a purchaser is strongly advised to consider the possibility that the premises may contain loose-fill asbestos insulation, within the meaning of the *Home Building Act 1989*, Part 8, Division 1A. In particular, a purchaser should—

- (a) search the Register required to be maintained under the *Home Building Act 1989*, Part 8, Division 1A, and
- (b) ask the relevant local council whether it holds records showing that the residential premises contain loose-fill asbestos insulation.

For further information about loose-fill asbestos insulation, including areas in which residential premises have been identified as containing loose-fill asbestos insulation, contact NSW Fair Trading.

Cooling off period (purchaser's rights)

- 1** This is the statement required by the *Conveyancing Act 1919*, section 66X. This statement applies to a contract for the sale of residential property.
- 2** EXCEPT in the circumstances listed in paragraph 3, the purchaser may rescind the contract before 5pm on—
 - (a) for an off the plan contract—the tenth business day after the day on which the contract was made, or
 - (b) in any other case—the fifth business day after the day on which the contract was made.
- 3** There is NO COOLING OFF PERIOD—
 - (a) if, at or before the time the contract is made, the purchaser gives to the vendor, or the vendor's solicitor or agent, a certificate that complies with the Act, section 66W, or
 - (b) if the property is sold by public auction, or
 - (c) if the contract is made on the same day as the property was offered for sale by public auction but passed in, or
 - (d) if the contract is made in consequence of the exercise of an option, other than an option that is void under the Act, section 66ZG.
- 4** A purchaser exercising the right to cool off by rescinding the contract forfeits 0.25% of the purchase price of the property to the vendor.
- 5** The vendor is entitled to recover the forfeited amount from an amount paid by the purchaser as a deposit under the contract. The purchaser is entitled to a refund of any balance.

DISPUTES

If you get into a dispute with the other party, the Law Society and Real Estate Institute encourage you to use informal procedures to resolve the dispute such as negotiation, independent expert appraisal, the Law Society Conveyancing Dispute Resolution Scheme or mediation (for example mediation under the Law Society Mediation Program).

AUCTIONS

Regulations made under the Property and Stock Agents Act 2002 prescribe a number of conditions applying to sales by auction.

WARNINGS

1. Various Acts of Parliament and other matters can affect the rights of the parties to this contract. Some important matters are actions, claims, decisions, licences, notices, orders, proposals or rights of way involving:

Australian Taxation Office	Local Council
County Council	Local Land Services
Department of Education	NSW Fair Trading
Department of Planning, Housing and Infrastructure	NSW Public Works
Department of Primary Industries and Regional Development	Owner of adjoining land
Electricity, gas and telecommunications	Privacy
Homes NSW	Subsidence Advisory NSW
	Transport agencies
	Water, sewerage or drainage authority

If you think that any of these matters affects the property, tell your solicitor.
2. A lease may be affected by the Agricultural Tenancies Act 1990, the Residential Tenancies Act 2010 or the Retail Leases Act 1994.
3. If any purchase money is owing to the Crown, it will become payable before obtaining consent, or if no consent is needed, when the transfer is registered.
4. If a consent to transfer is required under legislation, see clause 27 as to the obligations of the parties.
5. The vendor should continue the vendor's insurance until completion. If the vendor wants to give the purchaser possession before completion, the vendor should first ask the insurer to confirm this will not affect the insurance.
6. Most purchasers will have to pay transfer duty (and, sometimes, if the purchaser is not an Australian citizen, surcharge purchaser duty) on this contract. If a payment is not made on time, interest and penalties may be incurred. More information is available from Revenue NSW.
7. If the purchaser agrees to the release of deposit, the purchaser's right to recover the deposit may stand behind the rights of others (for example the vendor's mortgagee).
8. The purchaser should arrange insurance as appropriate.
9. Some transactions involving personal property may be affected by the Personal Property Securities Act 2009.
10. A purchaser should be satisfied that finance will be available at the time of completing the purchase.
11. The purchaser may have to comply with a foreign resident capital gains withholding payment obligation (even if the vendor is not a foreign resident). If so, this will affect the amount available to the vendor on completion.
12. Purchasers of some residential properties may have to withhold part of the purchase price to be credited towards the GST liability of the vendor. If so, this will also affect the amount available to the vendor. More information is available from the Australian Taxation Office.
13. From 1 July 2026, estate agents, solicitors, licensed conveyancers and other professions who provide a designated service will have regulatory obligations under the Anti-Money Laundering and Counter-Terrorism Financing (AML/CTF) regime. These new obligations include customer due diligence and reporting to AUSTRAC. More details are available from AUSTRAC.

The vendor sells and the purchaser buys the *property* for the price under these provisions instead of Schedule 3 Conveyancing Act 1919, subject to any *legislation* that cannot be excluded.

1 Definitions (a term in italics is a defined term)

1.1 In this contract, these terms (in any form) mean –

<i>adjustment date</i>	the earlier of the giving of possession to the purchaser or completion;
<i>adjustment figures</i>	details of the adjustments to be made to the price under clause 14;
<i>authorised Subscriber</i>	a <i>Subscriber</i> (not being a <i>party's solicitor</i>) named in a notice <i>served</i> by a <i>party</i> as being authorised for the purposes of clause 20.6.8;
<i>bank</i>	the Reserve Bank of Australia or an authorised deposit-taking institution which is a bank, a building society or a credit union;
<i>business day</i>	any day except a bank or public holiday throughout NSW or a Saturday or Sunday;
<i>cheque</i>	a cheque that is not postdated or stale;
<i>clearance certificate</i>	a certificate within the meaning of s14-220 of Schedule 1 to the <i>TA Act</i> , that covers one or more days falling within the period from and including the contract date to completion;
<i>completion time</i>	the time of day at which completion is to occur;
<i>deposit-bond</i>	a deposit bond or guarantee with each of the following approved by the vendor – • the issuer; • the expiry date (if any); and • the amount;
<i>depositholder</i>	vendor's agent (or if no vendor's agent is named in this contract, the vendor's <i>solicitor</i> , or if no vendor's <i>solicitor</i> is named in this contract, the buyer's agent);
<i>discharging mortgagee</i>	any discharging mortgagee, chargee, covenant chargee or caveator whose provision of a <i>Digitally Signed</i> discharge of mortgage, discharge of charge or withdrawal of caveat is required in order for unencumbered title to the <i>property</i> to be transferred to the purchaser;
<i>document of title</i>	document relevant to the title or the passing of title;
<i>ECNL</i>	the Electronic Conveyancing National Law (NSW);
<i>electronic document</i>	a dealing as defined in the Real Property Act 1900 which may be created and <i>Digitally Signed</i> in an <i>Electronic Workspace</i> ;
<i>electronic transaction</i>	a <i>Conveyancing Transaction</i> to be conducted for the <i>parties</i> by their legal representatives as <i>Subscribers</i> using an <i>ELN</i> and in accordance with the <i>ECNL</i> and the <i>participation rules</i> ;
<i>electronic transfer</i>	a transfer of land under the Real Property Act 1900 for the <i>property</i> to be prepared and <i>Digitally Signed</i> in the <i>Electronic Workspace</i> established for the purposes of the <i>parties' Conveyancing Transaction</i> ;
<i>FRCGW percentage</i>	the percentage mentioned in s14-200(3)(a) of Schedule 1 to the <i>TA Act</i> (15% as at 1 January 2025);
<i>FRCGW remittance</i>	a remittance which the purchaser must make under s14-200 of Schedule 1 to the <i>TA Act</i> , being the lesser of the <i>FRCGW percentage</i> of the price (inclusive of GST, if any) and the amount specified in a <i>variation served</i> by a <i>party</i> ;
<i>GST Act</i>	A New Tax System (Goods and Services Tax) Act 1999;
<i>GST rate</i>	the rate mentioned in s4 of A New Tax System (Goods and Services Tax Imposition - General) Act 1999 (10% as at 1 July 2000);
<i>GSTRW payment</i>	a payment which the purchaser must make under s14-250 of Schedule 1 to the <i>TA Act</i> (the price multiplied by the <i>GSTRW rate</i>);
<i>GSTRW rate</i>	the rate determined under ss14-250(6), (8) or (9) of Schedule 1 to the <i>TA Act</i> (as at 1 July 2018, usually 7% of the price if the margin scheme applies, 1/11 th if not);
<i>incoming mortgagee</i>	any mortgagee who is to provide finance to the purchaser on the security of the <i>property</i> and to enable the purchaser to pay the whole or part of the price;
<i>legislation</i>	an Act or a by-law, ordinance, regulation or rule made under an Act;
<i>manual transaction</i>	a <i>Conveyancing Transaction</i> in which a dealing forming part of the <i>Lodgment Case</i> at or following completion cannot be <i>Digitally Signed</i> ;
<i>normally</i>	subject to any other provision of this contract;
<i>participation rules</i>	the participation rules as determined by the <i>ECNL</i> ;
<i>party</i>	each of the vendor and the purchaser;
<i>property</i>	the land, the improvements, all fixtures and the inclusions, but not the exclusions;
<i>planning agreement</i>	a valid voluntary agreement within the meaning of s7.4 of the Environmental Planning and Assessment Act 1979 entered into in relation to the <i>property</i> ;
<i>populate</i>	to complete data fields in the <i>Electronic Workspace</i> ;

<i>requisition</i>	an objection, question or requisition (but the term does not include a claim);
<i>rescind</i>	rescind this contract from the beginning;
<i>serve</i>	serve in writing on the other <i>party</i> ;
<i>settlement cheque</i>	an unendorsed <i>cheque</i> made payable to the person to be paid and – • issued by a <i>bank</i> and drawn on itself; or • if authorised in writing by the vendor or the vendor's <i>solicitor</i>, some other <i>cheque</i>;
<i>solicitor</i>	in relation to a <i>party</i> , the <i>party's</i> solicitor or licensed conveyancer named in this contract or in a notice served by the <i>party</i> ;
<i>TA Act</i>	Taxation Administration Act 1953;
<i>terminate</i>	terminate this contract for breach;
<i>title data</i>	the details of the title to the <i>property</i> made available to the <i>Electronic Workspace</i> by the <i>Land Registry</i> ;
<i>variation</i>	a variation made under s14-235 of Schedule 1 to the <i>TA Act</i> ;
<i>within</i>	in relation to a period, at any time before or during the period; and
<i>work order</i>	a valid direction, notice or order that requires work to be done or money to be spent on or in relation to the <i>property</i> or any adjoining footpath or road (but the term does not include a notice under s22E of the Swimming Pools Act 1992 or clause 20 of the Swimming Pools Regulation 2018).

- 1.2 Words and phrases used in this contract (italicised and in Title Case, such as *Conveyancing Transaction*, *Digitally Sign*, *Electronic Workspace*, *ELN*, *ELNO*, *Land Registry*, *Lodgment Case* and *Subscriber*) have the meanings given in the *participation rules*.

2 Deposit and other payments before completion

- 2.1 The purchaser must pay the deposit to the *depositholder* as stakeholder.
- 2.2 *Normally*, the purchaser must pay the deposit on the making of this contract, and this time is essential.
- 2.3 If this contract requires the purchaser to pay any of the deposit by a later time, that time is also essential.
- 2.4 The purchaser can pay any of the deposit by –
- 2.4.1 giving cash (up to \$2,000) to the *depositholder*;
 - 2.4.2 unconditionally giving a *cheque* to the *depositholder* or to the vendor, vendor's agent or vendor's *solicitor* for sending to the *depositholder*; or
 - 2.4.3 electronic funds transfer to the *depositholder's* nominated account and, if requested by the vendor or the *depositholder*, providing evidence of that transfer.
- 2.5 The vendor can *terminate* if –
- 2.5.1 any of the deposit is not paid on time;
 - 2.5.2 a *cheque* for any of the deposit is not honoured on presentation; or
 - 2.5.3 a payment under clause 2.4.3 is not received in the *depositholder's* nominated account by 5.00 pm on the third *business day* after the time for payment.
- This right to *terminate* is lost as soon as the deposit is paid in full.
- 2.6 If the vendor accepts a *deposit-bond* for the deposit, clauses 2.1 to 2.5 do not apply.
- 2.7 If the vendor accepts a *deposit-bond* for part of the deposit, clauses 2.1 to 2.5 apply only to the balance.
- 2.8 If any of the deposit or of the balance of the price is paid before completion to the vendor or as the vendor directs, it is a charge on the land in favour of the purchaser until *termination* by the vendor or completion, subject to any existing right.
- 2.9 If each *party* tells the *depositholder* that the deposit is to be invested, the *depositholder* is to invest the deposit (at the risk of the *party* who becomes entitled to it) with a *bank*, in an interest-bearing account in NSW, payable at call, with interest to be reinvested, and pay the interest to the *parties* equally, after deduction of all proper government taxes and financial institution charges and other charges.

3 Deposit-bond

- 3.1 This clause applies only if the vendor accepts a *deposit-bond* for the deposit (or part of it).
- 3.2 The purchaser must provide the *deposit-bond* to the vendor's *solicitor* (or if no solicitor the *depositholder*) at or before the making of this contract and this time is essential.
- 3.3 If the *deposit-bond* has an expiry date and completion does not occur by the date which is 14 days before the expiry date, the purchaser must *serve* a replacement *deposit-bond* at least 7 days before the expiry date. The time for service is essential.
- 3.4 The vendor must approve a replacement *deposit-bond* if –
- 3.4.1 it is from the same issuer and for the same amount as the earlier *deposit-bond*; and
 - 3.4.2 it has an expiry date at least three months after its date of issue.
- 3.5 A breach of clauses 3.2 or 3.3 entitles the vendor to *terminate*. The right to *terminate* is lost as soon as –
- 3.5.1 the purchaser *serves* a replacement *deposit-bond*; or
 - 3.5.2 the deposit is paid in full under clause 2.
- 3.6 Clauses 3.3 and 3.4 can operate more than once.

- 3.7 If the purchaser serves a replacement *deposit-bond*, the vendor must serve the earlier *deposit-bond*.
- 3.8 The amount of any *deposit-bond* does not form part of the price for the purposes of clause 16.5.
- 3.9 The vendor must give the purchaser any original *deposit-bond* –
- 3.9.1 on completion; or
 - 3.9.2 if this contract is *rescinded*.
- 3.10 If this contract is *terminated* by the vendor –
- 3.10.1 *normally*, the vendor can immediately demand payment from the issuer of the *deposit-bond*; or
 - 3.10.2 if the purchaser serves prior to *termination* a notice disputing the vendor's right to *terminate*, the vendor must forward any original *deposit-bond* (or its proceeds if called up) to the *depositholder* as stakeholder.
- 3.11 If this contract is *terminated* by the purchaser –
- 3.11.1 *normally*, the vendor must give the purchaser any original *deposit-bond*; or
 - 3.11.2 if the vendor serves prior to *termination* a notice disputing the purchaser's right to *terminate*, the vendor must forward any original *deposit-bond* (or its proceeds if called up) to the *depositholder* as stakeholder.
- 4 Electronic transaction**
- 4.1 This *Conveyancing Transaction* is to be conducted as an *electronic transaction* unless –
- 4.1.1 the contract says this transaction is a *manual transaction*, giving the reason, or
 - 4.1.2 a party serves a notice stating why the transaction is a *manual transaction*, in which case the parties do not have to complete earlier than 14 days after service of the notice, and clause 21.3 does not apply to this provision,
- and in both cases clause 30 applies.
- 4.2 If, because of clause 4.1.2, this *Conveyancing Transaction* is to be conducted as a *manual transaction* –
- 4.2.1 each party must –
 - bear equally any disbursements or fees; and
 - otherwise bear that party's own costs;
 incurred because this *Conveyancing Transaction* was to be conducted as an *electronic transaction*; and
 - 4.2.2 if a party has paid all of a disbursement or fee which, by reason of this clause, is to be borne equally by the parties, that amount must be adjusted under clause 14.
- 4.3 The parties must conduct the *electronic transaction* –
- 4.3.1 in accordance with the *participation rules* and the *ECNL*; and
 - 4.3.2 using the nominated *ELN*, unless the parties otherwise agree. This clause 4.3.2 does not prevent a party using an *ELN* which can interoperate with the nominated *ELN*.
- 4.4 A party must pay the fees and charges payable by that party to the *ELNO* and the *Land Registry*.
- 4.5 *Normally*, the vendor must *within 7 days* of the contract date create and *populate* an *Electronic Workspace* with *title data* and the date for completion, and invite the purchaser to the *Electronic Workspace*.
- 4.6 If the vendor has not created an *Electronic Workspace* in accordance with clause 4.5, the purchaser may create and *populate* an *Electronic Workspace* and, if it does so, the purchaser must invite the vendor to the *Electronic Workspace*.
- 4.7 The parties must, as applicable to their role in the *Conveyancing Transaction* and the steps taken under clauses 4.5 or 4.6 –
- 4.7.1 promptly join the *Electronic Workspace* after receipt of an invitation;
 - 4.7.2 create and *populate* an *electronic transfer*;
 - 4.7.3 invite any *discharging mortgagee* or *incoming mortgagee* to join the *Electronic Workspace*; and
 - 4.7.4 *populate* the *Electronic Workspace* with a nominated *completion time*.
- 4.8 If the transferee in the *electronic transfer* is not the purchaser, the purchaser must give the vendor a direction signed by the purchaser personally for that transfer.
- 4.9 The vendor can require the purchaser to include a covenant or easement in the *electronic transfer* only if this contract contains the wording of the proposed covenant or easement, and a description of the land burdened and benefited.
- 4.10 If the purchaser must make a *GSTRW payment* or an *FRCGW remittance*, the purchaser must *populate* the *Electronic Workspace* with the payment details for the *GSTRW payment* or *FRCGW remittance* payable to the Deputy Commissioner of Taxation at least 2 *business days* before the date for completion.
- 4.11 Before completion, the parties must ensure that –
- 4.11.1 all *electronic documents* which a party must *Digitally Sign* to complete the *electronic transaction* are *populated* and *Digitally Signed*;
 - 4.11.2 all certifications required by the *ECNL* are properly given; and
 - 4.11.3 they do everything else in the *Electronic Workspace* which that party must do to enable the *electronic transaction* to proceed to completion.
- 4.12 If the computer systems of any of the *Land Registry*, the *ELNO*, Revenue NSW or the Reserve Bank of Australia are inoperative for any reason at the *completion time* agreed by the parties, a failure to complete this contract for that reason is not a default under this contract on the part of either party.

- 4.13 If the computer systems of the *Land Registry* are inoperative for any reason at the *completion time* agreed by the *parties*, and the *parties* choose that financial settlement is to occur despite this, then on financial settlement occurring –
- 4.13.1 all *electronic documents Digitally Signed* by the vendor and any discharge of mortgage, withdrawal of caveat or other *electronic document* forming part of the *Lodgment Case* for the *electronic transaction* are taken to have been unconditionally and irrevocably delivered to the purchaser or the purchaser's mortgagee at the time of financial settlement together with the right to deal with the land; and
- 4.13.2 the vendor is taken to have no legal or equitable interest in the *property*.
- 4.14 If the *parties* do not agree about the delivery before completion of one or more documents or things that cannot be delivered through the *Electronic Workspace*, the *party* required to deliver the documents or things –
- 4.14.1 holds them on completion in escrow for the benefit of; and
- 4.14.2 must immediately after completion deliver the documents or things to, or as directed by; the *party* entitled to them.

5 Requisitions

- 5.1 If a form of *requisitions* is attached to this contract, the purchaser is taken to have made those *requisitions*.
- 5.2 If the purchaser is or becomes entitled to make any other *requisition*, the purchaser can make it only by *serving* it –
- 5.2.1 if it arises out of this contract or it is a general question about the *property* or title - *within* 21 days after the contract date;
- 5.2.2 if it arises out of anything *served* by the vendor - *within* 21 days after the later of the contract date and that *service*; and
- 5.2.3 in any other case - *within* a reasonable time.

6 Error or misdescription

- 6.1 *Normally*, the purchaser can (but only before completion) claim compensation for an error or misdescription in this contract (as to the *property*, the title or anything else and whether substantial or not).
- 6.2 This clause applies even if the purchaser did not take notice of or rely on anything in this contract containing or giving rise to the error or misdescription.
- 6.3 However, this clause does not apply to the extent the purchaser knows the true position.

7 Claims by purchaser

- Normally*, the purchaser can make a claim (including a claim under clause 6) before completion only by *serving* it with a statement of the amount claimed, and if the purchaser makes one or more claims before completion –
- 7.1 the vendor can *rescind* if in the case of claims that are not claims for delay –
- 7.1.1 the total amount claimed exceeds 5% of the price;
- 7.1.2 the vendor *serves* notice of intention to *rescind*; and
- 7.1.3 the purchaser does not *serve* notice waiving the claims *within* 14 days after that *service*; and
- 7.2 if the vendor does not *rescind*, the *parties* must complete and if this contract is completed –
- 7.2.1 the lesser of the total amount claimed and 10% of the price must be paid out of the price to and held by the *depositholder* until the claims are finalised or lapse;
- 7.2.2 the amount held is to be invested in accordance with clause 2.9;
- 7.2.3 the claims must be finalised by an arbitrator appointed by the *parties* or, if an appointment is not made *within* 1 month of completion, by an arbitrator appointed by the President of the Law Society at the request of a *party* (in the latter case the *parties* are bound by the terms of the Conveyancing Arbitration Rules approved by the Law Society as at the date of the appointment);
- 7.2.4 the purchaser is not entitled, in respect of the claims, to more than the total amount claimed and the costs of the purchaser;
- 7.2.5 net interest on the amount held must be paid to the *parties* in the same proportion as the amount held is paid; and
- 7.2.6 if the *parties* do not appoint an arbitrator and neither *party* requests the President to appoint an arbitrator *within* 3 months after completion, the claims lapse and the amount belongs to the vendor.

8 Vendor's rights and obligations

- 8.1 The vendor can *rescind* if –
- 8.1.1 the vendor is, on reasonable grounds, unable or unwilling to comply with a *requisition*;
- 8.1.2 the vendor *serves* a notice of intention to *rescind* that specifies the *requisition* and those grounds; and
- 8.1.3 the purchaser does not *serve* a notice waiving the *requisition* *within* 14 days after that *service*.

- 8.2 If the vendor does not comply with this contract (or a notice under or relating to it) in an essential respect, the purchaser can *terminate* by *serving* a notice. After the *termination* –
- 8.2.1 the purchaser can recover the deposit and any other money paid by the purchaser under this contract;
 - 8.2.2 the purchaser can sue the vendor to recover damages for breach of contract; and
 - 8.2.3 if the purchaser has been in possession a *party* can claim for a reasonable adjustment.

9 Purchaser's default

If the purchaser does not comply with this contract (or a notice under or relating to it) in an essential respect, the vendor can *terminate* by *serving* a notice. After the *termination* the vendor can –

- 9.1 keep or recover the deposit (to a maximum of 10% of the price);
- 9.2 hold any other money paid by the purchaser under this contract as security for anything recoverable under this clause –
 - 9.2.1 for 12 months after the *termination*; or
 - 9.2.2 if the vendor commences proceedings under this clause *within* 12 months, until those proceedings are concluded; and
- 9.3 sue the purchaser either –
 - 9.3.1 where the vendor has resold the *property* under a contract made *within* 12 months after the *termination*, to recover –
 - the deficiency on resale (with credit for any of the deposit kept or recovered and after allowance for any capital gains tax or goods and services tax payable on anything recovered under this clause); and
 - the reasonable costs and expenses arising out of the purchaser's non-compliance with this contract or the notice and of resale and any attempted resale; or
 - 9.3.2 to recover damages for breach of contract.

10 Restrictions on rights of purchaser

- 10.1 The purchaser cannot make a claim or *requisition* or *rescind* or *terminate* in respect of –
 - 10.1.1 the ownership or location of any fence as defined in the Dividing Fences Act 1991;
 - 10.1.2 a service for the *property* being a joint service or passing through another property, or any service for another property passing through the *property* ('service' includes air, communication, drainage, electricity, garbage, gas, oil, radio, sewerage, telephone, television or water service);
 - 10.1.3 a wall being or not being a party wall in any sense of that term or the *property* being affected by an easement for support or not having the benefit of an easement for support;
 - 10.1.4 any change in the *property* due to fair wear and tear before completion;
 - 10.1.5 a promise, representation or statement about this contract, the *property* or the title, not set out or referred to in this contract;
 - 10.1.6 a condition, exception, reservation or restriction in a Crown grant;
 - 10.1.7 the existence of any authority or licence to explore or prospect for gas, minerals or petroleum;
 - 10.1.8 any easement or restriction on use the substance of either of which is disclosed in this contract or any non-compliance with the easement or restriction on use; or
 - 10.1.9 anything the substance of which is disclosed in this contract (except a caveat, charge, mortgage, priority notice or writ).
- 10.2 The purchaser cannot *rescind* or *terminate* only because of a defect in title to or quality of the inclusions.
- 10.3 *Normally*, the purchaser cannot make a claim or *requisition* or *rescind* or *terminate* or require the vendor to change the nature of the title disclosed in this contract (for example, to remove a caution evidencing qualified title, or to lodge a plan of survey as regards limited title).

11 Compliance with work orders

- 11.1 *Normally*, the vendor must by completion comply with a *work order* made on or before the contract date and if this contract is completed the purchaser must comply with any other *work order*.
- 11.2 If the purchaser complies with a *work order*, and this contract is *rescinded* or *terminated*, the vendor must pay the expense of compliance to the purchaser.

12 Certificates and inspections

The vendor must do whatever is reasonably necessary to enable the purchaser, subject to the rights of any tenant –

- 12.1 to have the *property* inspected to obtain any certificate or report reasonably required;
- 12.2 to apply (if necessary in the name of the vendor) for –
 - 12.2.1 any certificate that can be given in respect of the *property* under *legislation*; or
 - 12.2.2 a copy of any approval, certificate, consent, direction, notice or order in respect of the *property* given under *legislation*, even if given after the contract date; and
- 12.3 to make 1 inspection of the *property* in the 3 days before a time appointed for completion.

13 Goods and services tax (GST)

- 13.1 Terms used in this clause which are not defined elsewhere in this contract and have a defined meaning in the *GST Act* have the same meaning in this clause.
- 13.2 *Normally*, if a *party* must pay the price or any other amount to the other *party* under this contract, GST is not to be added to the price or amount.
- 13.3 If under this contract a *party* must make an adjustment or payment for an expense of another party or pay an expense payable by or to a third party (for example, under clauses 14 or 20.7), the *party* must adjust or pay on completion any GST added to or included in the expense, but –
- 13.3.1 the amount of the expense must be reduced to the extent the party receiving the adjustment or payment (or the representative member of a GST group of which that party is a member) is entitled to an input tax credit for the expense; and
- 13.3.2 if the adjustment or payment under this contract is consideration for a taxable supply, an amount for GST must be added at the *GST rate*.
- 13.4 If this contract says this sale is the supply of a going concern –
- 13.4.1 the *parties* agree the supply of the *property* is a supply of a going concern;
- 13.4.2 the vendor must, between the contract date and completion, carry on the enterprise conducted on the land in a proper and business-like way;
- 13.4.3 if the purchaser is not registered by the date for completion, the *parties* must complete and the purchaser must pay on completion, in addition to the price, an amount being the price multiplied by the *GST rate* ("the retention sum"). The retention sum is to be held by the *depositholder* and dealt with as follows –
- if *within* 3 months of completion the purchaser serves a letter from the Australian Taxation Office stating the purchaser is registered with a date of effect of registration on or before completion, the *depositholder* is to pay the retention sum to the purchaser; but
 - if the purchaser does not serve that letter *within* 3 months of completion, the *depositholder* is to pay the retention sum to the vendor; and
- 13.4.4 if the vendor, despite clause 13.4.1, serves a letter from the Australian Taxation Office stating the vendor has to pay GST on the supply, the purchaser must pay to the vendor on demand the amount of GST assessed.
- 13.5 *Normally*, the vendor promises the margin scheme will not apply to the supply of the *property*.
- 13.6 If this contract says the margin scheme is to apply in making the taxable supply, the *parties* agree that the margin scheme is to apply to the sale of the *property*.
- 13.7 If this contract says the sale is not a taxable supply –
- 13.7.1 the purchaser promises that the *property* will not be used and represents that the purchaser does not intend the *property* (or any part of the *property*) to be used in a way that could make the sale a taxable supply to any extent; and
- 13.7.2 the purchaser must pay the vendor on completion in addition to the price an amount calculated by multiplying the price by the *GST rate* if this sale is a taxable supply to any extent because of –
- a breach of clause 13.7.1; or
 - something else known to the purchaser but not the vendor.
- 13.8 If this contract says this sale is a taxable supply in full and does not say the margin scheme applies to the *property*, the vendor must pay the purchaser on completion an amount of one-eleventh of the price if –
- 13.8.1 this sale is not a taxable supply in full; or
- 13.8.2 the margin scheme applies to the *property* (or any part of the *property*).
- 13.9 If this contract says this sale is a taxable supply to an extent –
- 13.9.1 clause 13.7.1 does not apply to any part of the *property* which is identified as being a taxable supply; and
- 13.9.2 the payments mentioned in clauses 13.7 and 13.8 are to be recalculated by multiplying the relevant payment by the proportion of the price which represents the value of that part of the *property* to which the clause applies (the proportion to be expressed as a number between 0 and 1). Any evidence of value must be obtained at the expense of the vendor.
- 13.10 *Normally*, on completion the vendor must give the recipient of the supply a tax invoice for any taxable supply by the vendor by or under this contract.
- 13.11 The vendor does not have to give the purchaser a tax invoice if the margin scheme applies to a taxable supply.
- 13.12 If the vendor is liable for GST on rents or profits due to issuing an invoice or receiving consideration before completion, any adjustment of those amounts must exclude an amount equal to the vendor's GST liability.
- 13.13 If the vendor serves details of a *GSTRW payment* which the purchaser must make, the purchaser does not have to complete earlier than 5 *business days* after that service and clause 21.3 does not apply to this provision.
- 13.14 If the purchaser must make a *GSTRW payment* the purchaser must, at least 2 *business days* before the date for completion, serve evidence of submission of a *GSTRW payment* notification form to the Australian Taxation Office by the purchaser or, if a direction under either clause 4.8 or clause 30.4 has been given, by the transferee named in the transfer the subject of that direction.

14 Adjustments

- 14.1 *Normally*, the vendor is entitled to the rents and profits and will be liable for all rates, water, sewerage and drainage service and usage charges, land tax, levies and all other periodic outgoings up to and including the *adjustment date* after which the purchaser will be entitled and liable.
- 14.2 The *parties* must make any necessary adjustment on completion, and –
- 14.2.1 the purchaser must provide the vendor with *adjustment figures* at least 2 *business days* before the date for completion; and
- 14.2.2 the vendor must confirm the *adjustment figures* at least 1 *business day* before the date for completion.
- 14.3 If an amount that is adjustable under this contract has been reduced under *legislation*, the *parties* must on completion adjust the reduced amount.
- 14.4 The *parties* must not adjust surcharge land tax (as defined in the Land Tax Act 1956) but must adjust any other land tax for the year current at the *adjustment date* –
- 14.4.1 only if land tax has been paid or is payable for the year (whether by the vendor or by a predecessor in title) and this contract says that land tax is adjustable;
- 14.4.2 by adjusting the amount that would have been payable if at the start of the year –
- the person who owned the land owned no other land;
 - the land was not subject to a special trust or owned by a non-concessional company; and
 - if the land (or part of it) had no separate taxable value, by calculating its separate taxable value on a proportional area basis.
- 14.5 The *parties* must not adjust any first home buyer choice property tax.
- 14.6 If any other amount that is adjustable under this contract relates partly to the land and partly to other land, the *parties* must adjust it on a proportional area basis.
- 14.7 If on completion the last bill for a water, sewerage or drainage usage charge is for a period ending before the *adjustment date*, the vendor is liable for an amount calculated by dividing the bill by the number of days in the period then multiplying by the number of unbilled days up to and including the *adjustment date*.
- 14.8 The vendor is liable for any amount recoverable for work started on or before the contract date on the *property* or any adjoining footpath or road.

15 Date for completion

The *parties* must complete by the date for completion and, if they do not, a *party* can serve a notice to complete if that *party* is otherwise entitled to do so.

16 Completion

• Vendor

- 16.1 *Normally*, on completion the vendor must cause the legal title to the *property* (being the estate disclosed in this contract) to pass to the purchaser free of any charge, mortgage or other interest, subject to any necessary registration.
- 16.2 The legal title to the *property* does not pass before completion.
- 16.3 If the vendor gives the purchaser a document (other than the transfer) that needs to be lodged for registration, the vendor must pay the lodgment fee to the purchaser.
- 16.4 If a *party* serves a land tax certificate showing a charge on any of the land, by completion the vendor must do all things and pay all money required so that the charge is no longer effective against the land.

• Purchaser

- 16.5 On completion the purchaser must pay to the vendor –
- 16.5.1 the price less any –
- deposit paid;
 - *FRCGW remittance* payable;
 - *GSTRW payment*; and
 - amount payable by the vendor to the purchaser under this contract; and
- 16.5.2 any other amount payable by the purchaser under this contract.
- 16.6 If any of the deposit is not covered by a *deposit-bond*, at least 1 *business day* before the date for completion the purchaser must give the vendor an order signed by the purchaser authorising the *depositholder* to account to the vendor for the deposit, to be held by the vendor in escrow until completion.
- 16.7 On completion the deposit belongs to the vendor.

17 Possession

- 17.1 *Normally*, the vendor must give the purchaser vacant possession of the *property* on completion.
- 17.2 The vendor does not have to give vacant possession if –
- 17.2.1 this contract says that the sale is subject to existing tenancies; and
- 17.2.2 the contract discloses the provisions of the tenancy (for example, by attaching a copy of the lease and any relevant memorandum or variation).
- 17.3 *Normally*, the purchaser can claim compensation (before or after completion) or *rescind* if any of the land is affected by a protected tenancy (a tenancy affected by Schedule 2, Part 7 of the Residential Tenancies Act 2010).

18 Possession before completion

- 18.1 This clause applies only if the vendor gives the purchaser possession of the *property* before completion.
- 18.2 The purchaser must not before completion –
- 18.2.1 let or part with possession of any of the *property*;
 - 18.2.2 make any change or structural alteration or addition to the *property*; or
 - 18.2.3 contravene any agreement between the *parties* or any direction, document, *legislation*, notice or order affecting the *property*.
- 18.3 The purchaser must until completion –
- 18.3.1 keep the *property* in good condition and repair having regard to its condition at the giving of possession; and
 - 18.3.2 allow the vendor or the vendor's authorised representative to enter and inspect it at all reasonable times.
- 18.4 The risk as to damage to the *property* passes to the purchaser immediately after the purchaser enters into possession.
- 18.5 If the purchaser does not comply with this clause, then without affecting any other right of the vendor –
- 18.5.1 the vendor can before completion, without notice, remedy the non-compliance; and
 - 18.5.2 if the vendor pays the expense of doing this, the purchaser must pay it to the vendor with interest at the rate prescribed under s101 Civil Procedure Act 2005.
- 18.6 If this contract is *rescinded* or *terminated* the purchaser must immediately vacate the *property*.
- 18.7 If the *parties* or their *solicitors* on their behalf do not agree in writing to a fee or rent, none is payable.

19 Rescission of contract

- 19.1 If this contract expressly gives a *party* a right to *rescind*, the *party* can exercise the right –
- 19.1.1 only by *serving* a notice before completion; and
 - 19.1.2 in spite of any making of a claim or *requisition*, any attempt to satisfy a claim or *requisition*, any arbitration, litigation, mediation or negotiation or any giving or taking of possession.
- 19.2 *Normally*, if a *party* exercises a right to *rescind* expressly given by this contract or any *legislation* –
- 19.2.1 the deposit and any other money paid by the purchaser under this contract must be refunded;
 - 19.2.2 a *party* can claim for a reasonable adjustment if the purchaser has been in possession;
 - 19.2.3 a *party* can claim for damages, costs or expenses arising out of a breach of this contract; and
 - 19.2.4 a *party* will not otherwise be liable to pay the other *party* any damages, costs or expenses.

20 Miscellaneous

- 20.1 The *parties* acknowledge that anything stated in this contract to be attached was attached to this contract by the vendor before the purchaser signed it and is part of this contract.
- 20.2 Anything attached to this contract is part of this contract.
- 20.3 An area, bearing or dimension in this contract is only approximate.
- 20.4 If a *party* consists of 2 or more persons, this contract benefits and binds them separately and together.
- 20.5 A *party's solicitor* can receive any amount payable to the *party* under this contract or direct in writing that it is to be paid to another person.
- 20.6 A document under or relating to this contract is –
- 20.6.1 signed by a *party* if it is signed by the *party* or the *party's solicitor* (apart from a direction under clause 4.8 or clause 30.4);
 - 20.6.2 *served* if it is *served* by the *party* or the *party's solicitor*;
 - 20.6.3 *served* if it is *served* on the *party's solicitor*, even if the *party* has died or any of them has died;
 - 20.6.4 *served* if it is *served* in any manner provided in s170 of the Conveyancing Act 1919;
 - 20.6.5 *served* if it is sent by email or fax to the *party's solicitor*, unless in either case it is not received;
 - 20.6.6 *served* on a person if it (or a copy of it) comes into the possession of the person;
 - 20.6.7 *served* at the earliest time it is *served*, if it is *served* more than once; and
 - 20.6.8 *served* if it is provided to or by the *party's solicitor* or an *authorised Subscriber* by means of an *Electronic Workspace* created under clause 4. However, this does not apply to a notice making an obligation essential, or a notice of *rescission* or *termination*.
- 20.7 An obligation to pay an expense of another *party* of doing something is an obligation to pay –
- 20.7.1 if the *party* does the thing personally - the reasonable cost of getting someone else to do it; or
 - 20.7.2 if the *party* pays someone else to do the thing - the amount paid, to the extent it is reasonable.
- 20.8 Rights under clauses 4, 11, 13, 14, 17, 24, 30 and 31 continue after completion, whether or not other rights continue.
- 20.9 The vendor does not promise, represent or state that the purchaser has any cooling off rights.
- 20.10 The vendor does not promise, represent or state that any attached survey report is accurate or current.
- 20.11 A reference to any *legislation* (including any percentage or rate specified in *legislation*) is also a reference to any corresponding later *legislation*.
- 20.12 Each *party* must do whatever is necessary after completion to carry out the *party's* obligations under this contract.
- 20.13 Neither taking possession nor *serving* a transfer of itself implies acceptance of the *property* or the title.

- 20.14 The details and information provided in this contract (for example, on pages 1 - 4) are, to the extent of each *party's* knowledge, true, and are part of this contract.
- 20.15 Where this contract provides for choices, a choice in BLOCK CAPITALS applies unless a different choice is marked.
- 20.16 Each *party* consents to –
- 20.16.1 any *party* signing this contract electronically; and
 - 20.16.2 the making of this contract by the exchange of counterparts delivered by email, or by such other electronic means as may be agreed by the *parties*.
- 20.17 Each *party* agrees that electronic signing by a *party* identifies that *party* and indicates that *party's* intention to be bound by this contract.

21 Time limits in these provisions

- 21.1 If the time for something to be done or to happen is not stated in these provisions, it is a reasonable time.
- 21.2 If there are conflicting times for something to be done or to happen, the latest of those times applies.
- 21.3 The time for one thing to be done or to happen does not extend the time for another thing to be done or to happen.
- 21.4 If the time for something to be done or to happen is the 29th, 30th or 31st day of a month, and the day does not exist, the time is instead the last day of the month.
- 21.5 If the time for something to be done or to happen is a day that is not a *business day*, the time is extended to the next *business day*, except in the case of clauses 2 and 3.2.
- 21.6 *Normally*, the time by which something must be done is fixed but not essential.

22 Foreign Acquisitions and Takeovers Act 1975

- 22.1 The purchaser promises that the Commonwealth Treasurer cannot prohibit and has not prohibited the transfer under the Foreign Acquisitions and Takeovers Act 1975.
- 22.2 This promise is essential and a breach of it entitles the vendor to *terminate*.

23 Strata or community title

• Definitions and modifications

- 23.1 This clause applies only if the land (or part of it) is a lot in a strata, neighbourhood, precinct or community scheme (or on completion is to be a lot in a scheme of that kind).
- 23.2 In this contract –
- 23.2.1 'change', in relation to a scheme, means –
 - a registered or registrable change from by-laws set out in this contract;
 - a change from a development contract or management statement set out in this contract; or
 - a change in the boundaries of common property;
 - 23.2.2 'common property' includes association property for the scheme or any higher scheme;
 - 23.2.3 'contribution' includes an amount payable under a by-law;
 - 23.2.4 'information certificate' includes a certificate under s184 Strata Schemes Management Act 2015 and s174 Community Land Management Act 2021;
 - 23.2.5 'interest notice' includes a strata interest notice under s22 Strata Schemes Management Act 2015 and an association interest notice under s20 Community Land Management Act 2021;
 - 23.2.6 'normal expenses', in relation to an owners corporation for a scheme, means normal operating expenses usually payable from the administrative fund of an owners corporation for a scheme of the same kind;
 - 23.2.7 'owners corporation' means the owners corporation or the association for the scheme or any higher scheme;
 - 23.2.8 'the *property*' includes any interest in common property for the scheme associated with the lot; and
 - 23.2.9 'special expenses', in relation to an owners corporation, means its actual, contingent or expected expenses, except to the extent they are –
 - normal expenses;
 - due to fair wear and tear;
 - disclosed in this contract; or
 - covered by moneys held in the capital works fund.
- 23.3 Clauses 11, 14.8 and 18.4 do not apply to an obligation of the owners corporation, or to property insurable by it.
- 23.4 Clauses 14.4.2 and 14.6 apply but on a unit entitlement basis instead of an area basis.
- ### **• Adjustments and liability for expenses**
- 23.5 The *parties* must adjust under clause 14.1 –
- 23.5.1 a regular periodic contribution;
 - 23.5.2 a contribution which is not a regular periodic contribution but is disclosed in this contract; and
 - 23.5.3 on a unit entitlement basis, any amount paid by the vendor for a normal expense of the owners corporation to the extent the owners corporation has not paid the amount to the vendor.

- 23.6 If a contribution is not a regular periodic contribution and is not disclosed in this contract –
- 23.6.1 the vendor is liable for it if it was determined on or before the contract date, even if it is payable by instalments; and
- 23.6.2 the purchaser is liable for all contributions determined after the contract date.
- 23.7 The vendor must pay or allow to the purchaser on completion the amount of any unpaid contributions for which the vendor is liable under clause 23.6.1.
- 23.8 *Normally*, the purchaser cannot make a claim or *requisition* or *rescind* or *terminate* in respect of –
- 23.8.1 an existing or future actual, contingent or expected expense of the owners corporation;
- 23.8.2 a proportional unit entitlement of the lot or a relevant lot or former lot, apart from a claim under clause 6; or
- 23.8.3 a past or future change in the scheme or a higher scheme.
- 23.9 However, the purchaser can *rescind* if –
- 23.9.1 the special expenses of the owners corporation at the later of the contract date and the creation of the owners corporation when calculated on a unit entitlement basis (and, if more than one lot or a higher scheme is involved, added together), less any contribution paid by the vendor, are more than 1% of the price;
- 23.9.2 in the case of the lot or a relevant lot or former lot in a higher scheme, a proportional unit entitlement for the lot is disclosed in this contract but the lot has a different proportional unit entitlement at the contract date or at any time before completion;
- 23.9.3 a change before the contract date or before completion in the scheme or a higher scheme materially prejudices the purchaser and is not disclosed in this contract; or
- 23.9.4 a resolution is passed by the owners corporation before the contract date or before completion to give to the owners in the scheme for their consideration a strata renewal plan that has not lapsed at the contract date and there is not attached to this contract a strata renewal proposal or the strata renewal plan.
- **Notices, certificates and inspections**
- 23.10 Before completion, the purchaser must serve a copy of an interest notice addressed to the owners corporation and signed by the purchaser.
- 23.11 After completion, the purchaser must insert the date of completion in the interest notice and send it to the owners corporation.
- 23.12 The vendor can complete and send the interest notice as agent for the purchaser.
- 23.13 The vendor must *serve* at least 7 days before the date for completion, an information certificate for the lot, the scheme or any higher scheme which relates to a period in which the date for completion falls.
- 23.14 The purchaser does not have to complete earlier than 7 days after *service* of the information certificate and clause 21.3 does not apply to this provision. On completion the purchaser must pay the vendor the prescribed fee for the information certificate.
- 23.15 The vendor authorises the purchaser to apply for the purchaser's own information certificate.
- 23.16 The vendor authorises the purchaser to apply for and make an inspection of any record or other document in the custody or control of the owners corporation or relating to the scheme or any higher scheme.
- **Meetings of the owners corporation**
- 23.17 If a general meeting of the owners corporation is convened before completion –
- 23.17.1 if the vendor receives notice of it, the vendor must immediately notify the purchaser of it; and
- 23.17.2 after the expiry of any cooling off period, the purchaser can require the vendor to appoint the purchaser (or the purchaser's nominee) to exercise any voting rights of the vendor in respect of the lot at the meeting.
- 24 Tenancies**
- 24.1 If a tenant has not made a payment for a period preceding or current at the *adjustment date* –
- 24.1.1 for the purposes of clause 14.2, the amount is to be treated as if it were paid; and
- 24.1.2 the purchaser assigns the debt to the vendor on completion and will if required give a further assignment at the vendor's expense.
- 24.2 If a tenant has paid in advance of the *adjustment date* any periodic payment in addition to rent, it must be adjusted as if it were rent for the period to which it relates.
- 24.3 If the *property* is to be subject to a tenancy on completion or is subject to a tenancy on completion –
- 24.3.1 the vendor authorises the purchaser to have any accounting records relating to the tenancy inspected and audited and to have any other document relating to the tenancy inspected;
- 24.3.2 the vendor must *serve* any information about the tenancy reasonably requested by the purchaser before or after completion; and
- 24.3.3 *normally*, the purchaser can claim compensation (before or after completion) if –
- a disclosure statement required by the Retail Leases Act 1994 was not given when required;
 - such a statement contained information that was materially false or misleading;
 - a provision of the lease is not enforceable because of a non-disclosure in such a statement; or
 - the lease was entered into in contravention of the Retail Leases Act 1994.

- 24.4 If the *property* is subject to a tenancy on completion –
- 24.4.1 the vendor must allow or transfer –
- any remaining bond money or any other security against the tenant's default (to the extent the security is transferable);
 - any money in a fund established under the lease for a purpose and compensation for any money in the fund or interest earned by the fund that has been applied for any other purpose; and
 - any money paid by the tenant for a purpose that has not been applied for that purpose and compensation for any of the money that has been applied for any other purpose;
- 24.4.2 if the security is not transferable, each *party* must do whatever is reasonably necessary to cause a replacement security to issue for the benefit of the purchaser and the vendor must hold the original security on trust for the benefit of the purchaser until the replacement security issues;
- 24.4.3 the vendor must give to the purchaser –
- at least 2 *business days* before the date for completion, a proper notice of the transfer (an attornment notice) addressed to the tenant, to be held by the purchaser in escrow until completion;
 - any certificate given under the Retail Leases Act 1994 in relation to the tenancy;
 - a copy of any disclosure statement given under the Retail Leases Act 1994;
 - a copy of any document served on the tenant under the lease and written details of its service, if the document concerns the rights of the landlord or the tenant after completion; and
 - any document served by the tenant under the lease and written details of its service, if the document concerns the rights of the landlord or the tenant after completion;
- 24.4.4 the vendor must comply with any obligation to the tenant under the lease, to the extent it is to be complied with by completion; and
- 24.4.5 the purchaser must comply with any obligation to the tenant under the lease, to the extent that the obligation is disclosed in this contract and is to be complied with after completion.
- 25 Qualified title, limited title and old system title**
- 25.1 This clause applies only if the land (or part of it) –
- 25.1.1 is under qualified, limited or old system title; or
- 25.1.2 on completion is to be under one of those titles.
- 25.2 The vendor must *serve* a proper abstract of title *within 7 days* after the contract date.
- 25.3 If an abstract of title or part of an abstract of title is attached to this contract or has been lent by the vendor to the purchaser before the contract date, the abstract or part is *served* on the contract date.
- 25.4 An abstract of title can be or include a list of documents, events and facts arranged (apart from a will or codicil) in date order, if the list in respect of each document –
- 25.4.1 shows its date, general nature, names of parties and any registration number; and
- 25.4.2 has attached a legible photocopy of it or of an official or registration copy of it.
- 25.5 An abstract of title –
- 25.5.1 must start with a good root of title (if the good root of title must be at least 30 years old, this means 30 years old at the contract date);
- 25.5.2 in the case of a leasehold interest, must include an abstract of the lease and any higher lease;
- 25.5.3 *normally*, need not include a Crown grant; and
- 25.5.4 need not include anything evidenced by the Register kept under the Real Property Act 1900.
- 25.6 In the case of land under old system title –
- 25.6.1 in this contract 'transfer' means conveyance;
- 25.6.2 the purchaser does not have to *serve* the transfer until after the vendor has *served* a proper abstract of title; and
- 25.6.3 each vendor must give proper covenants for title as regards that vendor's interest.
- 25.7 In the case of land under limited title but not under qualified title –
- 25.7.1 *normally*, the abstract of title need not include any document which does not show the location, area or dimensions of the land (for example, by including a metes and bounds description or a plan of the land);
- 25.7.2 clause 25.7.1 does not apply to a document which is the good root of title; and
- 25.7.3 the vendor does not have to provide an abstract if this contract contains a delimitation plan (whether in registrable form or not).
- 25.8 On completion the vendor must give the purchaser any *document of title* that relates only to the *property*.
- 25.9 If on completion the vendor has possession or control of a *document of title* that relates also to other property, the vendor must produce it as and where necessary.
- 25.10 The vendor must give a proper covenant to produce where relevant.
- 25.11 The vendor does not have to produce or covenant to produce a document that is not in the possession of the vendor or a mortgagee.
- 25.12 If the vendor is unable to produce an original document in the chain of title, the purchaser will accept a photocopy from the *Land Registry* of the registration copy of that document.

26 Crown purchase money

- 26.1 This clause applies only if purchase money is payable to the Crown, whether or not due for payment.
 26.2 The vendor is liable for the money, except to the extent this contract says the purchaser is liable for it.
 26.3 To the extent the vendor is liable for it, the vendor is liable for any interest until completion.
 26.4 To the extent the purchaser is liable for it, the *parties* must adjust any interest under clause 14.

27 Consent to transfer

- 27.1 This clause applies only if the land (or part of it) cannot be transferred without consent under *legislation* or a *planning agreement*.
 27.2 The purchaser must properly complete and then serve the purchaser's part of an application for consent to transfer of the land (or part of it) *within 7 days* after the contract date.
 27.3 The vendor must apply for consent *within 7 days* after *service* of the purchaser's part.
 27.4 If consent is refused, either *party* can *rescind*.
 27.5 If consent is given subject to one or more conditions that will substantially disadvantage a *party*, then that *party* can *rescind within 7 days* after receipt by or *service* upon the *party* of written notice of the conditions.
 27.6 If consent is not given or refused –
 27.6.1 *within 42 days* after the purchaser serves the purchaser's part of the application, the purchaser can *rescind*; or
 27.6.2 *within 30 days* after the application is made, either *party* can *rescind*.
 27.7 Each period in clause 27.6 becomes 90 days if the land (or part of it) is –
 27.7.1 under a *planning agreement*; or
 27.7.2 in the Western Division.
 27.8 If the land (or part of it) is described as a lot in an unregistered plan, each time in clause 27.6 becomes the later of the time and 35 days after creation of a separate folio for the lot.
 27.9 The date for completion becomes the later of the date for completion and 14 days after *service* of the notice granting consent to transfer.

28 Unregistered plan

- 28.1 This clause applies only if some of the land is described as a lot in an unregistered plan.
 28.2 The vendor must do whatever is reasonably necessary to have the plan registered *within 6 months* after the contract date, with or without any minor alteration to the plan or any document to be lodged with the plan validly required or made under *legislation*.
 28.3 If the plan is not registered *within* that time and in that manner –
 28.3.1 the purchaser can *rescind*; and
 28.3.2 the vendor can *rescind*, but only if the vendor has complied with clause 28.2 and with any *legislation* governing the rescission.
 28.4 Either *party* can serve notice of the registration of the plan and every relevant lot and plan number.
 28.5 The date for completion becomes the later of the date for completion and 21 days after *service* of the notice.
 28.6 Clauses 28.2 and 28.3 apply to another plan that is to be registered before the plan is registered.

29 Conditional contract

- 29.1 This clause applies only if a provision says this contract or completion is conditional on an event, but does not apply to an event to which clause 28 applies.
 29.2 If the time for the event to happen is not stated, the time is 42 days after the contract date.
 29.3 If this contract says the provision is for the benefit of a *party*, then it benefits only that *party*.
 29.4 If anything is necessary to make the event happen, each *party* must do whatever is reasonably necessary to cause the event to happen.
 29.5 A *party* can *rescind* under this clause only if the *party* has substantially complied with clause 29.4.
 29.6 If the event involves an approval and the approval is given subject to a condition that will substantially disadvantage a *party* who has the benefit of the provision, the *party* can *rescind within 7 days* after either *party* serves notice of the condition.
 29.7 If the *parties* can lawfully complete without the event happening –
 29.7.1 if the event does not happen *within* the time for it to happen, a *party* who has the benefit of the provision can *rescind within 7 days* after the end of that time;
 29.7.2 if the event involves an approval and an application for the approval is refused, a *party* who has the benefit of the provision can *rescind within 7 days* after either *party* serves notice of the refusal; and
 29.7.3 the date for completion becomes the later of the date for completion and 21 days after the earliest of –
 • either *party* serving notice of the event happening;
 • every *party* who has the benefit of the provision serving notice waiving the provision; or
 • the end of the time for the event to happen.

- 29.8 If the *parties* cannot lawfully complete without the event happening –
- 29.8.1 if the event does not happen *within* the time for it to happen, either *party* can *rescind*;
 - 29.8.2 if the event involves an approval and an application for the approval is refused, either *party* can *rescind*;
 - 29.8.3 the date for completion becomes the later of the date for completion and 21 days after either *party* serves notice of the event happening.
- 29.9 A *party* cannot *rescind* under clauses 29.7 or 29.8 after the event happens.

30 Manual transaction

- 30.1 This clause applies if this transaction is to be conducted as a *manual transaction*.
- **Transfer**
 - 30.2 *Normally*, the purchaser must serve the transfer at least 7 days before the date for completion.
 - 30.3 If any information needed for the transfer is not disclosed in this contract, the vendor must serve it.
 - 30.4 If the purchaser serves a transfer and the transferee is not the purchaser, the purchaser must give the vendor a direction signed by the purchaser personally for that transfer.
 - 30.5 The vendor can require the purchaser to include a covenant or easement in the transfer only if this contract contains the wording of the proposed covenant or easement, and a description of the land burdened and benefited.
 - **Place for completion**
 - 30.6 *Normally*, the *parties* must complete at the completion address, which is –
 - 30.6.1 if a special completion address is stated in this contract - that address; or
 - 30.6.2 if none is stated, but a first mortgagee is disclosed in this contract and the mortgagee would usually discharge the mortgage at a particular place - that place; or
 - 30.6.3 in any other case - the vendor's *solicitor's* address stated in this contract.
 - 30.7 The vendor by reasonable notice can require completion at another place, if it is in NSW, but the vendor must pay the purchaser's additional expenses, including any agency or mortgagee fee.
 - 30.8 If the purchaser requests completion at a place that is not the completion address, and the vendor agrees, the purchaser must pay the vendor's additional expenses, including any agency or mortgagee fee.
 - **Payments on completion**
 - 30.9 On completion the purchaser must pay to the vendor the amounts referred to in clauses 16.5.1 and 16.5.2, by cash (up to \$2,000) or *settlement cheque*.
 - 30.10 *Normally*, the vendor can direct the purchaser to produce a *settlement cheque* on completion to pay an amount adjustable under this contract and if so –
 - 30.10.1 the amount is to be treated as if it were paid; and
 - 30.10.2 the *cheque* must be forwarded to the payee immediately after completion (by the purchaser if the *cheque* relates only to the *property* or by the vendor in any other case).
 - 30.11 If the vendor requires more than 5 *settlement cheques*, the vendor must pay \$10 for each extra *cheque*.
 - 30.12 If the purchaser must make a *GSTRW payment* the purchaser must –
 - 30.12.1 produce on completion a *settlement cheque* for the *GSTRW payment* payable to the Deputy Commissioner of Taxation;
 - 30.12.2 forward the *settlement cheque* to the payee immediately after completion; and
 - 30.12.3 serve evidence of receipt of payment of the *GSTRW payment* and a copy of the settlement date confirmation form submitted to the Australian Taxation Office.
 - 30.13 If the purchaser must pay an *FRCGW remittance*, the purchaser must –
 - 30.13.1 produce on completion a *settlement cheque* for the *FRCGW remittance* payable to the Deputy Commissioner of Taxation;
 - 30.13.2 forward the *settlement cheque* to the payee immediately after completion; and
 - 30.13.3 serve evidence of receipt of payment of the *FRCGW remittance*.

31 Foreign Resident Capital Gains Withholding

- 31.1 This clause applies only if –
- 31.1.1 the sale is not an excluded transaction within the meaning of s14-215 of Schedule 1 to the *TA Act*; and
 - 31.1.2 a *clearance certificate* in respect of every vendor is not attached to this contract.
- 31.2 If the vendor serves any *clearance certificate* or *variation*, the purchaser does not have to complete earlier than 5 *business days* after that *service* and clause 21.3 does not apply to this provision.
- 31.3 The purchaser must at least 2 *business days* before the date for completion, serve evidence of submission of a purchaser payment notification to the Australian Taxation Office by the purchaser or, if a direction under either clause 4.8 or clause 30.4 has been given, by the transferee named in the transfer the subject of that direction.
- 31.4 The vendor cannot refuse to complete if the purchaser complies with clause 31.3 and, as applicable, clauses 4.10 or 30.13.
- 31.5 If the vendor serves in respect of every vendor either a *clearance certificate* or a *variation* to 0.00 percent, clauses 31.3 and 31.4 do not apply.

32 Residential off the plan contract

- 32.1 This clause applies if this contract is an off the plan contract within the meaning of Division 10 of Part 4 of the Conveyancing Act 1919 (the Division).
- 32.2 No provision of this contract has the effect of excluding, modifying or restricting the operation of the Division.
- 32.3 If the purchaser makes a claim for compensation under the terms prescribed by sections 4 to 6 of Schedule 3 to the Conveyancing (Sale of Land) Regulation 2022 –
- 32.3.1 the purchaser cannot make a claim under this contract about the same subject matter, including a claim under clauses 6 or 7; and
- 32.3.2 the claim for compensation is not a claim under this contract.

8 WALKER AVE MASCOT NSW 2020

ADDITIONAL CLAUSES TO THE CONTRACT FOR THE SALE OF LAND
BETWEEN: WALKER AVE PROJECTS PTY LTD ACN 681 293 372 ATF Walker Ave
Projects Unit Trust (Vendor)
AND: THE PARTY NAMED AS PURCHASER ON THE FIRST PAGE OF THE CONTRACT
(Purchaser)
DATED:

33 DEFINITIONS, INTERPRETATION AND AMENDMENTS

- 33.1 (a) In the interpretation of this contract, unless inconsistent with the subject or context each of the words and expressions defined in Part 1 of Schedule 1 shall when used in these additional Clauses have the meaning there assigned to it and the provisions of Part 2 of Schedule 1 shall apply.
- (b) Paragraph (a) of this clause does not derogate from other methods used to define terms in this contract including, without limitation, definitions included in parentheses within the body of this contract.
- 33.2 It is agreed that any amendments to this contract will be recorded in Schedule 2.
- 33.3 The printed clauses of this contract are amended as follows:
- (a) The number "5" in clause 7.1.1 is deleted and replaced with "1"; in clause 7.2.1 the number "10" is deleted and replaced with "1";
 - (b) The words "on reasonable grounds" in clause 8.1.1 are deleted; the words "and those grounds" in clause 8.1.2 are deleted;
 - (c) The word "substance" in clauses 10.1.8 and 10.1.9 is deleted and replaced with the word "existence"; at the end of clause 10 insert the following provision:
"10.4 For the purposes of this clause 10, the vendor discloses all of the information appearing in the documents attached to this contract even if the contract does not refer to that disclosure.";
 - (d) The word "reasonable" is inserted before the word "expense" in the second line of clause 11.2; AND in clause 1 the definition of "work order" is amended by adding the following words after "2018" and before the parenthesis: "or any other notice or direction or order that requires work to be done or money to be spent on or in relation to or in connection with the swimming pool or any improvement associated with the swimming pool";
 - (e) Clause 14.4.2 is deleted and replaced with the following provision:
"by adjusting the amount of land tax actually paid or payable by the vendor or by a predecessor in title for the year; if such land tax relates partly to the land and partly to other land the parties must adjust the land tax on a proportionate land value basis."
 - (f) The following provision is inserted at the end of clause 14:
"14.9 The parties agree, that if an amount which is adjustable under this contract is overlooked or an amount that is adjusted under this contract is not calculated correctly, they will immediately upon demand by any party at any time, do all things necessary to ensure the proper adjustment for such amount is calculated by them ("the new calculation) and each party agrees they will make any necessary payment to the other party, as is necessary, arising from the new calculation."

- (g) Clause 18.7 is deleted.
- (h) Clause 23.6.1 is deleted and replaced with "the vendor is liable for all payments due prior to the contract date."
- (i) Clause 23.6.2 is deleted and replaced with 'the purchaser is liable for all payments due on and after the contract date.'
- (j) Clause 23.13 is deleted and replaced with the following provision:
"The vendor authorises the purchaser to apply for an information certificate in relation to the lot, the scheme or any higher scheme.";
- (k) Clauses 23.14 and 23.15 are deleted;
- (l) Clause 23.17 is deleted;
- (m) Clause 24 is deleted;
- (n) Clause 25 is deleted;
- (o) Clause 31.2 is deleted.

33.4 If there is any conflict between these additional Clauses and the printed clauses, the additional Clauses will prevail.

33.5 Each clause or part of a clause of this contract is severable from the remainder of this contract. If for any reason any clause or part of a clause is invalid or unenforceable the validity or enforceability of the remaining parts of the contract will not be prejudiced or in any other way effected.

33.6 Words and phrases defined in the printed conditions of this contract have the same meaning when used in these additional Clauses, even if those words are not italicised.

33.7 The parties authorise their respective solicitors or any employee of those solicitors to alter this contract up until the contract date. Any such alterations will be binding.

34 CLAIM FOR COMPENSATION

Notwithstanding any other provision of this contract the parties hereto expressly agree that any claim for compensation pursuant to clause 6 or otherwise shall be deemed to be a requisition for the purposes of clause 8.

35 ACKNOWLEDGEMENTS AND AGREEMENTS

35.1 The purchaser acknowledges they had the opportunity before the contract date to inspect the property and they have relied entirely on their own investigations and enquiries before they entered into the contract.

35.2 The parties agree that notwithstanding any other provision of this contract:

(a) The property and the fixtures, furnishings and chattels are sold in their present condition and state of repair and with all faults damage and defects (apparent or latent) and subject to any infestation, dilapidation and contamination and the Purchaser acknowledges the Vendor has not nor has anyone on the Vendor's behalf made any representation or warranty:

- (i) as to the condition or state of repair of the property and of the fixtures, furnishings and chattels;

- (ii) as to the fitness for any particular purpose of the whole or any part of the fixtures, furnishings and chattels;
- (iii) the use to which the property may be put;
- (iv) the suitability of the property for the Purchaser's purposes;
- (v) the rights and privileges (if any) pertaining to the property;
- (vi) as to any financial return or income to be derived from the property;

other than as expressly set out in this contract.

- (b) The Purchaser is not entitled to require the Vendor to effect any work or repairs to the property, the fixtures, furnishings and chattels and any improvements erected on the property prior to or after completion. For clarity the parties agree this clause applies with respect to any damage irrespective of when the damage occurs.
- (c) The Purchaser is not entitled to require the Vendor to remove any fixtures, furnishings, chattels, improvements, stored goods, building materials or rubbish from the property.

The Purchaser shall not be entitled to make any requisition or claim or rescind or terminate this contract or delay completion as a result of or in connection with or in relation to any matter referred to in this clause.

- 35.3 The Purchaser acknowledges that in entering into this contract, they do not rely on any other letter, statement, document, correspondence, representation or agreement whether oral or in writing as adding to or amending the terms, conditions, warranties and agreements set out in this contract and that except for the warranties as are deemed to be included herein pursuant to Section 52A(2)(b) of the Conveyancing Act 1919 and the Conveyancing (Sale of Land) Regulation 2022 the agreements, provisions terms and conditions herein contained comprise the whole of the bargain as concluded between the parties as at the date hereof.
- 35.4 The Purchaser acknowledges that if prior to the date of this contract the Vendor, the Vendor's agent or any person on behalf of the Vendor furnishes to the Purchaser information, forecasts or feasibilities relating directly or indirectly to the purchase of the property by the Purchaser as an investment on any basis whatsoever the Purchaser acknowledges and agrees that the Purchaser had not relied upon such information forecasts or feasibilities in entering into this contract but is relying entirely upon the Purchaser's own inquiries relating to the purchase of the property as an investment.
- 35.5 The Vendor discloses and the Purchaser acknowledges that the improvements on the property may not comply with all relevant legislation. The Purchaser accepts the property subject to the disclosures contained in this clause.
- 35.6 The Purchaser shall not be entitled to make any or claim or rescind or terminate this contract or delay completion as a result of or in connection with or in relation to any of the disclosures, acknowledgments or any matter in relation to the property, referred to in this clause 35 or in relation to the condition of the property.
- 35.7 If the property is a lot in a strata scheme, for the purposes of this clause 35 the word "property" includes the common property and all of the lots in the strata scheme.

36 SERVICES

- 36.1 Subject to the provisions of the Conveyancing (Sale of Land) Regulation 2017 (NSW), the Purchaser is purchasing the property and shall take title thereto subject to the existing services. The Purchaser shall not make any requisition or claim or rescind or terminate this contract:
- (a) in respect of the nature, location, availability or non-availability of any service or the fact that any service has been turned off;
 - (b) as to whether or not the property is subject to any service or mains, pipes or connections for any service;
 - (c) as to whether or not the property has the benefit of any rights or easements in respect of any service or mains, pipes or connections for any service;
 - (d) in respect of any defects in any service;
 - (e) if any underground or surface stormwater drain passes through or over the property;
 - (f) should any manhole or vent be on the property: or
 - (g) if any rainwater downpipe is connected to a sewer.
- 36.2 For the purpose of this clause the word "service" shall have the same meaning given to it pursuant to clause 10.1.2.

37 NOTICE TO COMPLETE

- 37.1 The parties agree that a period of fourteen (14) days following the date of service of a notice to complete will be deemed at law and in equity reasonable and sufficient to make the date specified in the notice time of the essence of this contract.
- 37.2 If the Vendor issues a notice to complete the Purchaser must pay to the Vendor on completion the Vendor's cost of the issue of the notice to complete amounting to \$330.00.

38 INTEREST

If completion shall not have been effected on or before the date for completion ("completion date") the Vendor shall be entitled to claim and receive interest on the price (less any part of the price the Vendor has received) calculated at the rate of eight per cent (8%) per annum computed on daily rests from the completion date (or should completion of this contract not take place on the completion date solely by reason of the Vendor not being ready willing and able to complete on the completion date, then from and including the day after such later date on which the Vendor is ready willing and able to complete this contract) until the date of completion. Any such interest shall be a liquidated debt due to the Vendor by the Purchaser and shall be immediately recoverable by the Vendor in any court of appropriate jurisdiction together with all costs and expenses of the Vendor relating to such enforcement and collection of payment. Such sum shall be paid by the Purchaser

to the Vendor on completion and the Vendor shall be entitled to refuse to complete this contract unless and until such interest shall have been paid.

39 DISCHARGE OF MORTGAGE ETC.

The Vendor shall do all things necessary to have any mortgage, writ or caveat registered on the title of the property discharged or withdrawn on completion and the vendor will allow the Purchaser the registration fee payable on any such discharge of mortgage or writ or withdrawal of caveat PROVIDED THAT this clause shall not apply with respect to a caveat by the Purchaser.

40 REAL ESTATE AGENT

The Purchaser warrants to the Vendor that it was not introduced (and if the Purchaser is a company, neither was a director or shareholder of the Purchaser introduced) to the property or the Vendor by any real estate agent (other than the agent(s), if any referred to on the front page of this contract). In the event that the Purchaser is in breach of such warranty the Purchaser hereby agrees to indemnify and keep indemnified the Vendor against any claim for commission by any agent or agents (other than any agent referred to on the front page of this contract) arising out of a breach of this warranty. This clause shall not merge on completion of this contract.

41 DEATH AND INSOLVENCY

Without in any manner negating, limiting or restricting any rights or remedies which would have been available to the Vendor at law or in equity had this clause not been included herein, should the Purchaser or, if more than one, any of them prior to completion:

- (a) die or become mentally ill, then the Vendor may rescind this contract by notice in writing served in accordance with the terms of this contract and thereupon this contract shall forthwith be at an end and the provisions of clause 19 shall apply;
- (b) be declared bankrupt or enter into any scheme or make any assignment for the benefit of creditors or being a company resolve to go into liquidation or have a petition for its winding up presented or enter into any scheme of arrangement with its creditors or should any liquidator, receiver or official manager or controller or administrator be appointed with respect to it then the Purchaser shall be deemed to be in default in an essential respect under this contract and the Vendor may terminate this contract and the provisions of clause 9 will apply to that termination.

42 NOTICES

Notwithstanding anything contained in clause 20.6 the service of any notice or document in connection with this contract shall be deemed to have been received by that party or

that party's solicitor where it is sent by email on the day it is actually transmitted to that party or that party's solicitor, save where:

- (a) the sender's computer indicates a malfunction or other failure with the email or the recipient immediately notifies the sender of an incomplete transmission, service shall not be deemed to have been effected; or
- (b) the email is not completed before 5.00 p.m. (Sydney time) on a normal business day, service shall be deemed to have been effected at 9.00 a.m. on the next business day.

43 DEPOSIT

43.1 If the deposit paid by the Purchaser is less than 10% of the price, and

- (a) the Vendor becomes entitled to terminate this contract,
- (b) the Purchaser will immediately upon demand pay to the Vendor the amount being the difference between the amount which is equal to 10% of the price and the amount of the deposit actually paid by the Purchaser.

This clause is in addition to and not in substitution for the rights of the Vendor under clause 9.3 and in addition to and not in substitution for any other rights or claims the Vendor may be entitled to pursuant to this contract.

43.2 Notwithstanding any other provision of this contract, the Parties agree that the deposit paid hereunder or any part of it ("Deposit") will at the request of the Vendor be released to the Vendor to be used for any purpose in connection with the purchase of another property and/or to pay the stamp duty for the purchase thereof. If the Vendor requires the use of the Deposit for any purpose contemplated by this clause the deposit holder is hereby given permission by the Parties pursuant to this clause to release the Deposit to the Vendor for such purposes and upon receipt of a direction by the Vendor requiring the release of the Deposit in accordance with this clause, the deposit holder must account for it to the Vendor.

43.3 Notwithstanding any other provision of this contract, the Parties agree that if the Vendor requires the deposit paid hereunder or any part of it ("Deposit") to be available on completion to discharge the mortgage in connection with the property or to assist the Vendor with a simultaneous settlement for a property being purchased, the deposit holder is hereby given permission by the Parties pursuant to this clause to release the Deposit for such purposes and to make the Deposit available in the PEXA workspace upon the deposit holder receiving a direction by the Vendor for the release of the Deposit in accordance with this clause.

43.4 If the Vendor requests that the deposit is to be invested then immediately upon exchange of contracts the parties must notify the Vendor's solicitor of their respective tax file numbers which the Vendor's solicitor are hereby authorised to give to the bank or building society or credit union with whom the deposit is to be invested or to the Vendors agent for notification to the bank or building society or credit union with whom the deposit is to be invested.

44 ELECTRONIC CONTRACT

- 44.1 In this clause, “electronic signature” means a digital signature or a visual representation of a person's signature or mark which is placed on a physical or electronic copy of this contract by electronic or mechanical means and “electronically signed” has a corresponding meaning.
- 44.2 The parties consent to this contract being signed by or on behalf of a party by an electronic signature.
- 44.3 Where this contract is electronically signed by or on behalf of a party, the party warrants and agrees that the electronic signature has been used to identify the person signing and to indicate that the party intends to be bound by electronic signature.
- 44.4 This contract may be signed, including electronically signed, in a number of counterparts which together will constitute one document.
- 44.5 Each party consents to the exchange of counterparts of this contract by delivery by email or such other electronic means as may be agreed by the parties.

45 LEASE

If a lease is attached to this contract, the following provisions of this clause shall apply:

- (a) The Purchaser acknowledges that the property is sold subject to any lease, a copy of which is annexed hereto (“the Lease”). In this contract the word “Tenant” means the tenant or lessee referred to in the Lease or otherwise being a party to the Lease or any person occupying the property as contemplated by the Lease.
- (b) The Purchaser acknowledges that before they entered into this contract that they satisfied themselves regarding all matters contained in or arising from the Lease. The Purchaser undertakes at all times to observe the covenants and obligations of the Vendor pursuant to the Lease and hereby indemnifies the Vendor in the event of any breach by the Purchaser or their assigns of such covenants or obligations or any of them. This clause shall not merge on completion.
- (c) Prior to completion the Vendor may arrange for or secure leases other than the Lease on terms and conditions which are the best reasonably obtainable between a willing Lessor and a willing Lessee in the market conditions then prevailing but the Purchaser shall have no right to require the Vendor to arrange for or to secure any leases additional to or in substitution of the Lease. The Purchaser shall complete this contract subject to any arrangements for leases which the Vendor may make pursuant to this clause.

- (d) The Purchaser must not make any claim or requisition or delay completion of, or rescind or terminate, this contract in relation to any matter relating to or in connection with the Lease or any disclosure statement issued with respect to the Lease or any matter disclosed in the Lease or any such disclosure statement, including (without limitation) in relation to:
 - (i) any matter referred to in paragraph (c) above;
 - (ii) in the event that before completion, the Lease is terminated or the Tenant vacates the property;
 - (iii) the fact that:
 - (A) the term of the Lease has expired or the option to renew the term of the Lease has not been exercised;
 - (B) any rental bond, security deposit or bank guarantee held by the Vendor has been deducted or called upon or expired prior to completion;
 - (C) any provision of the Lease is or may be unenforceable or that the Lease is or may be unenforceable;
 - (iv) the use of the property by the Tenant;
 - (v) any outstanding breach of the Lease or any relevant legislation including the Retail Leases Act 1994 (NSW), the Conveyancing Act 1919 (NSW) or the Real Property Act 1900 (NSW).
- (e) The Purchaser warrants that from completion they will comply with all of the obligations of the Vendor under the Lease. The Purchaser indemnifies the Vendor from and against any loss or damage the Vendor may suffer as a result of any failure by the Purchaser to observe and comply with the covenants on the part of the Vendor under the Lease after completion.
- (f) The Vendor warrants that until completion they will comply with their obligations under the Lease and they will not do any act matter or thing which gives rise to the Purchaser being liable to the Tenant for breach of the Lease, unless such act is in accordance with the terms of the Lease, or the Purchaser's prior consent is obtained.
- (g) In relation to any adjustments in connection with the Lease in accordance with clause 14, the Parties agree the Purchaser:
 - (i) must pay or allow to the Vendor on the adjustment date, up to and including the adjustment date, all rent, contributions to outgoings and other periodic payments under the Lease ("Lease Payments") which have not been at completion; and
 - (ii) if the Purchaser complies with the provisions paragraph (g)(i) above, they are entitled after completion to recover any Lease Payments which are due for the period up to and including the adjustment date but unpaid at completion.
- (h) This Clause is an essential term of this contract and will not merge on completion.

~~46 — GOODS AND SERVICES TAX (GST)~~

~~The parties acknowledge and agree that notwithstanding any other provision of this~~

contract:

- (a) ~~The price does not include any goods and services tax ("GST") payable under A New Tax System (Goods and Services Tax) Act 1999, or other relevant legislation.~~
- (b) ~~If the Vendor is or becomes required to pay GST in respect of any supply under this contract, the Purchaser will, without off-set or deduction, reimburse the Vendor for the GST payable ("GST Reimbursement").~~
- (c) ~~The GST Reimbursement amount will be notified by the Vendor to the Purchaser and must be paid by the Purchaser to the Vendor within seven (7) days of the Purchaser receiving the notification of the GST Reimbursement amount Provided That if the Purchaser is notified of the GST Reimbursement amount before completion the GST Reimbursement Amount must be paid on completion.~~
- (d) ~~If the Vendor becomes subject to any penalties or interest resulting from late payment of GST in respect of the supply under this contract because of failure by the Purchaser to comply with this clause, then the Purchaser must pay to the Vendor on demand, an additional amount equal to the amount of those penalties and/or interest.~~
- (e) ~~This Clause is an essential term of this contract and will not merge on completion and the Vendor's rights pursuant to this clause continue after completion.~~

47 PERSONAL GUARANTEE

47.1 In this Clause these words and expressions have the following meanings:
"Guarantor" means the director(s) of the Purchaser.

47.2 The Parties agree that the Guarantor shall be personally liable for the due performance of the Purchaser's obligations under this contract and shall indemnify the Vendor for any losses, damages, costs and expenses which may be incurred by the Vendor if the Purchaser does not perform their obligations under this contract and on the date of this contract, and in this respect time is of the essence, the Vendor and the Guarantor must enter into a deed of guarantee and indemnity in the form as required by the Vendor.

48 DEFECTS

- 48.1 (a) Any defects or faults due to faulty materials or workmanship which appear in the property and notice of which is served on the Vendor prior to the expiration of the period of three (3) months after completion, shall be rectified and made good by the Vendor at the Vendor's cost within a reasonable time after the expiration of such period of three (3) months after the completion of this contract.
- (b) Clause 48.1(a) shall not apply to nor include normal maintenance, normal wear and tear, minor shrinkage and minor settlement cracks.
- (c) In the event of any disagreement arising in connection with clauses 48.1(a)-(b) the matter must be referred to a single arbitrator nominated by the President for the time being of the Royal Australian Institute of Architects NSW Chapter whose decision shall be conclusive and binding on the parties. The cost of the arbitration must be borne by the party against whom the arbitrator's decision is made or as the arbitrator otherwise determines.
- (d) Prior to completion the Purchaser shall not be entitled to and shall not request the Vendor to rectify and make good at the Vendor's, the Purchaser's or any other person's expense any defects or faults whatsoever which may have appeared in the property prior to completion.
- (e) Notwithstanding any other provision of this contract any Major Defect in the property notified to the Vendor in writing before the date of completion must be made good by the Vendor at the Vendor's expense as soon as practicable and the Purchaser is not obliged to complete this contract until the Major Defect is rectified and made good.
- (f) If the Purchaser gives a notice under clause 40.1(a) or clause 40.1(e), they must give it to the Vendor or to the person the Vendor informs the Purchaser is responsible for monitoring defects, not to the Vendor's solicitor.
- (g) In this contract the expression "Major Defect" means a defect which may cause danger to occupants of the property, or a defect which makes the property uninhabitable, or a defect which because of its nature requires immediate rectification.

48.2 Access

The Purchaser must give the Vendor access to the property at all reasonable times for the purpose of undertaking work under this clause 48.

49 ADJUSTMENT OF RATES

- 49.1 Notwithstanding any other provision of this contract, if by the completion date a separate assessment for council rates or water rates ~~or land tax~~ has not been issued in respect of the property, the Purchaser agrees that for the purposes of adjustment of those rates and taxes pursuant to this contract:

- (a) the amount of council rates in respect of the property for the current year shall be deemed to be \$3,500.00;
- (b) the amount of water rates in respect of the property for the current quarter shall be deemed to be \$250.00;
- (c) Intentionally Deleted.

Such rates ~~and the land tax~~ shall be deemed to be paid and shall be adjusted on completion on a paid basis. No regard is to be had to the actual separate assessments for the council and water rates and the land tax if and when it is assessed.

49.2 If an adjustment is made in accordance with this clause or clause 14, the Vendor must when it issues, pay any assessment or assessments which may be issued in respect of the property for the year or quarter current at the completion date or any part of that year or quarter provided the Purchaser provides the Vendor with any such assessment(s) if they are issued to the Purchaser by the relevant rating or taxing authority.

50 GOODS AND SERVICES TAX

50.1 Price Includes GST

- (a) The price includes GST, if any, payable by the Vendor.
- (b) The Vendor discloses and the Purchaser acknowledges that the Vendor may, in its absolute discretion, calculate the GST under the scheme known as or generally referred to as the margin scheme in the A New Tax System (Goods and Service Tax) Act 1999.
- (c) The Purchaser acknowledges that, if the Vendor elects to utilise the margin scheme, the Purchaser will not be entitled to claim an input tax credit in respect of the GST paid by the Vendor.

51 INTENTIONALLY DELETED

52 FOREIGN INVESTMENT REVIEW BOARD

- (a) The Purchaser warrants to the Vendor:
 - (i) it is not a Foreign Person; and
 - (ii) FIRB cannot prohibit and has not prohibited the transfer of the property to the Purchaser under the Foreign Acquisitions and Takeovers Act 1975.
- (b) The Purchaser agrees that its promise in clause 52 (a) is an essential term of this contract a breach of which will entitle the Vendor to terminate this contract.

51 INTENTIONALLY DELETED

Schedule 1

Part 1 - Definitions

In this contract, unless the context otherwise indicates, each of the following words and expressions shall have the meaning assigned to it below:

"FIRB" means the Foreign Investment Review Board constituted under the provisions of the Foreign Acquisitions and Takeovers Act 1975 (Cth).

"Foreign Person" has the meaning given to it in the Foreign Acquisitions and Takeovers Act 1975 (Cth)".

"GST" means any tax, levy, charge or impost implemented under the GST Act.

"GST Act" means A New Tax System (Goods and Services Tax) Act 1999 (as amended).

"Major Defect" means a defect which may cause danger to occupants of the Property, or a defect which makes the Property uninhabitable, or a defect which because of its nature requires immediate rectification.

Part 2 - Interpretation

In this contract:

1. Headings are for convenience only and do not affect the interpretation of this contract;
2. Reference to any statute or statutory provision shall include any modification or re-enactment of, or any legislative provisions substituted for, and all legislation and statutory instruments issued under such legislation or such provision;
3. Words denoting the singular shall include the plural and vice versa;
4. Words denoting individuals shall include corporations, associations, trustees, instrumentalities and partnerships and vice versa;
5. Words denoting any gender shall include all genders;
6. References to Parties, Parts, Clauses, Annexures and Schedules are references to parties, parts, clauses, annexures and schedules to this contract as modified or varied from time to time;

7. References to any document, deed or agreement shall include references to such document or agreement as amended, novated, supplemented, varied or replaced from time to time;
8. A party includes the party's executors, administrators, successors and permitted assigns
9. All references to dates and times are to New South Wales time;
10. All references to "\$" and "dollars" are to the lawful currency of Australia unless otherwise expressly stated;
11. An agreement, representation, covenant, right or obligation:
 - (a) in favour of two or more persons is for the benefit of them jointly and severally; and
 - (b) on the part of two or more persons binds them jointly and severally;and where a party consists of more than one person a reference to that party shall be deemed to include a reference to any one or more of those persons.
12. The word "including" and similar expressions are not words of limitation;
13. Where a word or expression is given a particular meaning, other parts of speech and grammatical forms of that word or expression have a corresponding meaning;
14. The words or expressions "related body corporate", "subsidiary" and "holding company" have the same meaning as in the Corporations Act 2001 (Cth);
15. Reference to any body other than a party to this document, including, without limitation, an institute, association or authority, whether or not it is a statutory body:
 - (a) which ceases to exist, or
 - (b) whose powers or function are transferred to any other body, refers to the body which replaces it or which substantially succeeds to its powers or functions; and
16. If the day on which a person must do something under this contract is not a business day that person must do it on or by the next business day.

Schedule 2
Not used



Title Search

Information
Provided
Through
Triconvey2
(Reseller)
Ph. 1300 064
452

NEW SOUTH WALES LAND REGISTRY SERVICES - TITLE SEARCH

FOLIO: 1/536401

SEARCH DATE	TIME	EDITION NO	DATE
-----	----	-----	----
6/5/2026	9:06 AM	3	20/4/2026

LAND

LOT 1 IN DEPOSITED PLAN 536401
AT MASCOT
LOCAL GOVERNMENT AREA BAYSIDE
PARISH OF BOTANY COUNTY OF CUMBERLAND
TITLE DIAGRAM DP536401

FIRST SCHEDULE

WALKER AVE PROJECTS PTY LTD (T AU880542)

SECOND SCHEDULE (5 NOTIFICATIONS)

- 1 RESERVATIONS AND CONDITIONS IN THE CROWN GRANT(S)
- 2 C919191 COVENANT
- 3 AU880543 MORTGAGE TO NATIONAL AUSTRALIA BANK LIMITED
- 4 AW44725 POSITIVE COVENANT
- 5 AW44726 RESTRICTION(S) ON THE USE OF LAND

NOTATIONS

UNREGISTERED DEALINGS: NIL

*** END OF SEARCH ***

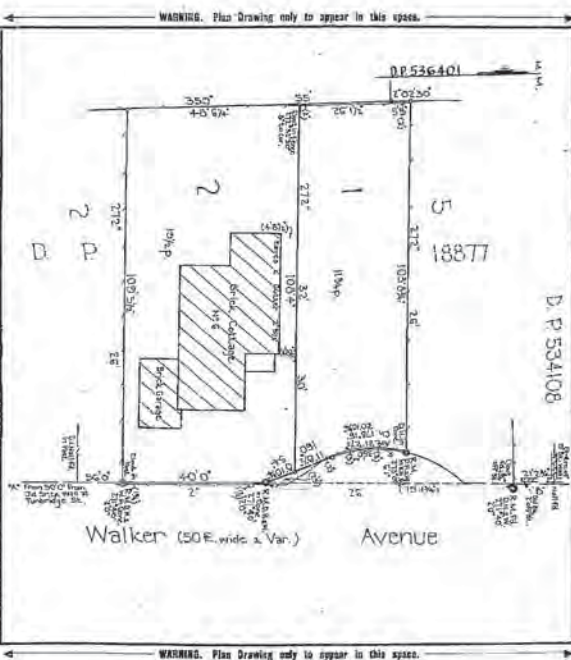
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18	19	20	21	22	23	24	25	26	27	28	29	30	31	32	33	34	35	36	37	38	39	40	41	42	43	44	45	46	47	48	49	50	51	52	53	54	55	56	57	58	59	60	61	62	63	64	65	66	67	68	69	70	71	72	73	74	75	76	77	78	79	80	81	82	83	84	85	86	87	88	89	90	91	92	93	94	95	96	97	98	99	100
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OFFICE USE ONLY

D P 536401

Registered: 07-1902
CA. N° 69/9 of 9-6-1
Title System: Torrents
Purpose: Subdivision
Plot No.: Mascot Sh. 3
Lot No.: D.P. 15077 #

N O O 2 A 1 A



Synopsis. Seek and Statements of Intention to dedicate public roads or public highways or create drainage network, easements or restrictions

[illegible]

M.P.D.

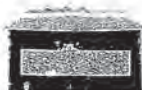
1042429J

.../.../...

CONVERSION TABLE ADDED IN
REGISTRAR GENERAL'S DEPARTMENT

[illegible]

1. JACK HARRISON WATKINS, Registrar General for New South Wales, certifies that this negative is a photograph made as a permanent record of a document in my custody this 6th day of July, 1976.





MEMORANDUM OF TRANSFER
(REAL PROPERTY ACT, 1900)

C919191

NEW SOUTH WALES
REGISTERED
DEED

FEES:-
Lodgment ...
Endorsement ...
Certificate ...

1/5
1/17/6
4 JUL 1940

(Trusts must not be disclosed in the transfer.)

I, CLARENCE STEWART McCALLUM of Sydney Electrical Contractor

(herein called transferor)

being registered as the proprietor of an estate in fee simple in the land hereinafter described, subject however, to such encumbrances, liens and interests as are notified hereunder in consideration of ONE THOUSAND ONE HUNDRED POUNDS

(£1100.0.0) (the price whereof is hereby acknowledged) paid to me by

CHURCH OF ENGLAND PROPERTY TRUST DIOCESE OF SYDNEY

(herein called transferee)

do hereby transfer to the said transferee

ALL such my Estate and Interest in ALL THE land mentioned in the schedule following:-

County.	Parish.	Reference to Title (c)			Description of Land (if part only). (d)
		Whole or Part.	Vol.	Fol.	
Cumberland	Botany	Part	4372	62	being lots 5 & 4 Deposited Plan 18877 and the land in the said Certificate of Title excluded from the said Deposited Plan

And the transferee covenants with the transferor for itself its successors and assigns and so as to bind not only itself its said successors and assigns but also the three several allotments of land hereby transferred DO TH HEREBY COVENANT with the said Transferor his executors administrators and assigns that any dwelling house or main building to be erected on any of the said allotments shall have walls of brick or of stone or partly of brick and partly of stone or other materials approved by the Transferor and shall be roofed with tiles and/or other materials approved by the Transferor. The lands which are subject to the burden of the aforesaid covenant shall be the said several allotments of land hereby transferred AND the land in the said Deposited Plan Number 18877 AND the said covenant may be altered varied or modified by or with the consent of the Transferor his executors administrators or assigns

ENCUMBRANCES, &c., REFERRED TO:

Reservations of mines of gold and of silver

Signed at Sydney

the fourteenth day of June 1940.

*Signed in my presence by the transferor

WHO IS PERSONALLY KNOWN TO ME

"Signed

CLARENCE STEWART McCALLUM
Transferor

g If executed within the State this instrument should be signed or acknowledged before the Registrar-General, or Deputy Registrar-General, or a Notary Public, a J.P., or Commissioner for Affidavits, to whom the Transferor is known, otherwise the attesting witness must appear before one of the above functionaries to make a declaration in the form overleaf as to instruments executed elsewhere, see page 2.

h Repeat attestation if necessary.

If the Transferor or Transferee signs by a mark, the attestation must state "that the instrument was read over and explained to him, and that he appeared fully to understand the same."

THE COMMON SEAL of the CHURCH OF

Signed in my presence by the transferee CHURCH OF ENGLAND PROPERTY TRUST DIOCESE OF SYDNEY who is personally known to me pursuant to a resolution passed at a duly constituted meeting of the said Trust held on the 14th day of June 1940 in the presence of

Church of England Property Trust Diocese of Sydney
Accepted, and hereby certifies this Transfer to be correct for the purposes of the Real Property Act.

Howard Sydney
Thos E. Campbell
Secretary

* If signed by virtue of any power of attorney, the original power must be registered, and produced with the deed, and the deed must be signed by the attorney before a witness.

† N.B. - Section 117 requires that the above Certificate be signed by the Transferor or his Solicitor, and that any person negligently certifying to a penalty of £50; also to damages recoverable by parties injured. If the Solicitor signs he must sign in his own name and that of his firm. No alterations should be made by erasure. The words rejected should be scored through with the pen, and those substituted written over them, the alteration being verified by signature or initials in the margin, or noticed in the attestation.

THIS SPACE TO BE LEFT FREE FROM NOTATION.

C919191

LODGED BY NORDON

No. _____

CONSENT OF MORTGAGEE.

I, _____ mortgagee under Mortgage No. _____
release and discharge the land comprised in the within transfer from such mortgage and all claims thereunder but without prejudice to my rights and remedies as regards the balance of the land comprised in such mortgage.

Dated at _____ this _____ day of _____ 19____ Mortgagee.
Signed in my presence by _____
who is personally known to me.

MEMORANDUM AS TO NON-REVOCATION OF POWER OF ATTORNEY.¹

(To be signed at the time of executing the within instrument.)

Memorandum whereby the undersigned states that he has no notice of the revocation of the Power of Attorney registered No. _____ Miscellaneous Register under the authority of which he has just executed the within transfer.¹

Signed at _____ the _____ day of _____ 19____
Signed at the place and on the date above-mentioned, in the presence of—

¹ This form is not appropriate in cases of delegation by trustee.

² Strike out unnecessary words. Add any other matter necessary to show that the power is effective.

FORM OF DECLARATION BY ATTESTING WITNESS.³

Appeared before me at _____ the _____ day of _____, one thousand _____
nine hundred and _____ the attesting witness to this instrument,
and declared that he personally knew _____ the person
signing the same, and whose signature thereto he has attested; and that the name purporting to be such is _____ own handwriting, and
that he was of sound mind and freely and voluntarily signed the same.

³ May be made before either Registrar-General, Deputy Registrar-General, a Notary Public, J.P., or Commissioner for Affidavits. Not required if the instrument itself be made or acknowledged before one of these parties.

MEMORANDUM OF TRANSFER OF

Acres _____ roods _____ perches _____
Lots 3 & 4 of 18877 land adj. 8
(Bolanje & Walker as.)
(subject to covenants.)
Shire _____
Municipality _____
Parish _____ County _____
Church of England Property Trust
Diocese of Sydney Transferee.

Particulars entered in Register Book, Vol. 437 Fol. 62

the 23rd day of July 1940
at _____ minutes 12 o'clock in the _____ noon

Reg. W. Mills
Registrar-General

DOCUMENTS LODGED HEREWITH.

To be filled in by person lodging dealing.

Nature.	No.	Reg'd Propr., M't'gor, etc.
Ch. of E.		

PROGRESS RECORD.

	Initials	Date
Sent to Survey Branch...	<i>W. Mills</i>	9/7/40
Received from Records...	<i>W. Mills</i>	9/7/40
Draft written ...	<i>W. Mills</i>	12/7/40
Draft examined...	<i>W. Mills</i>	16/7/40
Diagram prepared ...	<i>W. Mills</i>	17/7/40
Diagram examined ...	<i>W. Mills</i>	27/7/40
Draft forwarded ...	<i>W. Mills</i>	30/7/40
Supt. of Engrossers ...	<i>W. Mills</i>	30/7/40
Cancellation Clerk ...	<i>W. Mills</i>	30/7/40
VOL. 5157 For 110		
Diagram Fees ...		
Additional Folios ...		

If the parties be resident without the State, but in any other part of the British Dominions, the instrument must be signed or acknowledged before the Registrar-General or Recorder of Titles of such Possession, or before any Judge, Notary Public, Justice of the Peace for New South Wales, or Commissioner for taking affidavits for New South Wales, or the Mayor or Chief Officer of any municipal or local government corporation of such part, or the Governor, Government Resident, or Chief Secretary of such part or such other person as the Chief Justice of New South Wales may appoint.

If resident in the United Kingdom then before the Mayor or Chief Officer of any corporation or a Notary Public.

If resident at any foreign place, then the parties should sign or acknowledge before a British Minister, Ambassador, Envoy, Minister Chargé d'Affaires, Secretary of the Embassy or Legation, Consul-General, Consul, Vice-Consul, Acting-Consul, Pro-Consul, or Consular Agent, who should affix his seal of office, or the attesting witness may make a declaration of the due execution thereof before one of such persons (who should sign and affix his seal to such declaration), or such other person as the said Chief Justice may appoint.

The fees are:—Lodgment fee 12/6 (includes endorsement on first certificate), and 2/6 for each additional certificate included in the Transfer, and 1/1 for every new Certificate of Title issuing upon a Transfer on sale for a consideration of not more than £1,000, and 1/1 5s. for a new Certificate of Title in every other case. Additional fees, however, may be necessary in cases involving more than a simple diagram or more than six folios of engrossing.

Tenants in common must receive separate Certificates.

If part only of the land is transferred a new Certificate must issue, but the old Certificate may remain in the Office, or the Transferor may take out a new Certificate for the residue.

LEAVE THESE SPACES FOR DEPARTMENTAL USE.

Lodger Details

Lodger Code	504981W
Name	SPECTRUM CLIENT SOLUTIONS
Address	GPO BOX 2453 SYDNEY 2001
Lodger Box	390G
Email	ANDREW@SPECTRUMSOLUTIONS.COM.AU
Reference	G XYLAS BREAM S

Land Registry Document Identification

AW44726

STAMP DUTY:

Restriction on the Use of Land by a Prescribed Authority (13RPA)

Jurisdiction NEW SOUTH WALES

Privacy Collection Statement

The information in this form is collected under statutory authority and used for the purpose of maintaining publicly searchable registers and indexes.

Land Title Reference	Part Land Affected?	Land Description
1/536401	N	

Applicant

SPECTRUM SOLUTIONS PTY LIMITED ABN 60152116393ACN 152116393
Registered company

Document Type

Restriction on the Use of Land by a Prescribed Authority (13RPA)

The subscriber requests the Registrar-General to make any necessary recording in the Register to give effect to this instrument, in respect of the land or interest described above.

Attachment

See attached Dealing

Execution

The Certifier has retained the evidence supporting this Registry Instrument or Document.
The Certifier has taken reasonable steps to ensure that this Registry Instrument or Document is correct and compliant with relevant law and any Prescribed Requirement.

Executed on behalf of	SPECTRUM SOLUTIONS PTY LIMITED
Signer Name	KIM STAUB
Signer Organisation	SPECTRUM SOLUTIONS PTY LIMITED
Signer Role	PRACTITIONER CERTIFIER
Execution Date	17/04/2026



NSW Land Registry Services
Level 30, 175 Liverpool Street Sydney NSW 2000
GPO Box 15, Sydney NSW 2001
P (02) 8776 3575
E eConveyancingNSW@nswlrs.com.au
www.nswlrs.com.au

Lodgment Rules Exception Form

This form must be lodged with every Dealing with Exception and Miscellaneous Dealing (Miscellaneous Document) form, as defined in the Lodgment Rules.

Please accept this scanned paper dealing, as an eligible exception under Rules 5 or 10 of the Lodgment Rules, that has been lodged as either a:

1. Dealing with Exception form; or
2. Miscellaneous Dealing (Miscellaneous Document) form

Lodgment Rules exception number: * 45.1

**Insert, from the [Lodgment Rules exceptions list](#), the exception number relied on to use the Dealing with Exception form or Miscellaneous Dealing (Miscellaneous Document) form.*

The Lodgment Rules exception list is published on the Office of the Registrar General Lodgment Rules webpage:
<https://www.registrargeneral.nsw.gov.au/publications/lodgment-rules>

Form: 13RPA
Release: 3-3

**RESTRICTION ON THE
USE OF LAND BY A
PRESCRIBED AUTHORITY**

Leave this space clear. Affix additional
pages to the top left-hand corner.

New South Wales

Section 88E(3) Conveyancing Act 1919

PRIVACY NOTE: Section 31B of the Real Property Act 1900 (RP Act) authorises the Registrar General to collect the information required by this form for the establishment and maintenance of the Real Property Act Register. Section 96B RP Act requires that the Register is made available to any person for search upon payment of a fee, if any.

(A) TORRENS TITLE	1/536401		
(B) LODGED BY	Document Collection Box	Name, Address, Telephone, and Customer Account Number if any Email: _____ Reference: _____	CODE RV
(C) REGISTERED PROPRIETOR	Of the above land Walker Ave Projects Pty Limited ACN: 681 293 372		
(D) LESSEE MORTGAGEE or CHARGE	Of the above land agreeing to be bound by this restriction		
	Nature of Interest	Number of Instrument	Name
	Mortgage	AU880543	National Australia Bank Limited
(E) PRESCRIBED AUTHORITY	Within the meaning of section 88E(1) of the Conveyancing Act 1919 Bayside Council		

- (F) The prescribed authority having imposed on the above land a restriction in the terms set out in annexure A hereto applies to have it recorded in the Register and certifies this application correct for the purposes of the Real Property Act 1900.

DATE

- (G) I certify that an **authorised officer of the prescribed authority** who is personally known to me or as to whose identity I am otherwise satisfied signed this application in my presence. Delegated pursuant to Section 378 Local Govt Act 1993

Signature of witness: Peter Ward

Signature of authorised officer: Carine Elias

Name of witness: Peter Ward

Name of authorised officer: Carine Elias

Address of witness: 444 Princes Highway Rockdale

Position of authorised officer: Manager Development Services

Electronic signatures were affixed by Carine Elias and Peter Ward

10 April 2026

Certified correct for the purposes of the Real Property Act 1900
by the company named below the common seal of which was
affixed pursuant to the authority specified and in the presence
of the authorised person(s) whose signature(s) appear(s) below.

Company:

Authority:

For Execution by the Registered Proprietor see page 4

Signature of authorised person:

Signature of authorised person:

Name of authorised person:

Name of authorised person:

Office held:

Office held:

- (H) The mortgagee under mortgage No. AU880543 agrees to be bound by this restriction.
I certify that the mortgagee, who is personally known to me or as to whose identity I am otherwise satisfied, signed this application in my presence.

Signature of witness:

Signature of mortgagee:

Name of witness:

For execution by mortgagee see page 3

Address of witness:

* s117 RP Act requires that you must have known the signatory for more than 12 months or have sighted identifying documentation.

ALL HANDWRITING MUST BE IN BLOCK CAPITALS

ANNEXURE "A" to RESTRICTION ON THE USE OF LAND

PARTIES: Walker Ave Projects Pty Ltd and Bayside Council

Title : 1/536401

1. Terms of Restriction on the Use of Land for Stormwater Management System

The registered proprietor(s) shall not make or permit or suffer the making of any alterations to any on-site stormwater management system, which is, or shall be, constructed on the lot(s) burdened without the prior consent in writing of Bayside Council.

The expression "on-site stormwater management system" shall include all infiltration units, ancillary gutters, pipes, drains, trash screens, pits, grates, tanks, chambers, basins, rainwater tanks, pumps, walls, kerbs, chambers, basins, orifice plates and surfaces designed to manage stormwater quantity and quality, including the temporary detention or permanent retention of stormwater storages.

The on-site stormwater management system is detailed on the plans approved by Building Control Group, under Construction Certificate C250199-01 issued on 08/09/2025.

Any on-site stormwater management system constructed on the lot(s) burdened is hereafter referred to as "the on-site stormwater management system".

Name of Authority empowered to release, vary, or modify Positive Covenant

BAYSIDE COUNCIL.

EXECUTION BY MORTGAGEE: See Page 3 for execution by the Mortgagee



Electronic initial of
Hussein Chalich
affixed 16/04/2026



Electronic initial of
Carine Elias
affixed 16/04/2026



National Australia Bank Limited
ABN 12 004 044 937

CONSENT TO RESTRICTION ON THE USE OF LAND BY A PRESCRIBED AUTHORITY

Annexure to Restriction on the Use of Land by a Prescribed Authority

THIS IS AN ANNEXURE TO **RESTRICTION ON THE USE OF LAND BY A PRESCRIBED AUTHORITY** WITH WALKER AVE PROJECTS PTY LTD AS REGISTERED PROPRIETOR AND BAYSIDE COUNCIL AS PRESCRIBED AUTHORITY.

Torrens Title:

Folio Identifier 1/536401

NATIONAL AUSTRALIA BANK LIMITED ABN 12 004 044 937 as mortgagee by virtue of Mortgage Registered No. AU880543 hereby consents to the within **Restriction on the Use of Land by a Prescribed Authority** but without prejudice to and reserving all its rights powers and remedies under its Security.

DATED at Marrickville, NSW this 16th day of April 2026

SIGNED SEALED AND DELIVERED)

for and on behalf of **NATIONAL**)

AUSTRALIA BANK LIMITED)

ABN 12 004 044 937 by its Attorney)

who holds the position of)

Level 3 Attorney under)

Power of Attorney Registered No. 39)

Book 4512 in the presence of:)

A handwritten signature in black ink, appearing to be 'Erin Carter'.

Witness Signature

Erin Carter
Print Name

A handwritten signature in black ink, appearing to be 'Tameka Turner'.

Attorney Signature

Tameka Turner
Print Name

85-95 Marrickville Road, Marrickville

ANNEXURE "A" to RESTRICTION ON THE USE OF LAND

PARTIES: Walker Ave Projects Pty Ltd and Bayside Council

EXECUTED BY

Walker Ave Projects Pty Limited

ACN 681 293 372

in accordance with section 127(1) of the
Corporations Act 2001 (Cwlth) by the

Authority of its Directors:

Electronic Signature
Affixed by

Hussein Chalich

on 11/03/2026 @ 3:05 PM

Hussein Chalich

Signature of Director/Company Secretary (SOLE)

Hussein Chalich

Name of Director/Company Secretary (SOLE)
(block letters) *delete whichever is not applicable

EXECUTION BY BAYSIDE COUNCIL

Bayside Council by its authorised delegate pursuant to s.378 Local Government Act 1993.

I certify that I am an eligible witness and the
delegate signed in my presence:

Carine Elias

Signature of Delegate:

Carine Elias

Name of Delegate:

Peter Ward

Peter Ward

Name of Witness:

Address of Witness:

444 Princes Highway Rockdale

Electronic signatures were affixed by Carine Elias and Peter Ward

10 April 2026

Lodger Details

Lodger Code 504981W
Name SPECTRUM CLIENT SOLUTIONS
Address GPO BOX 2453
SYDNEY 2001
Lodger Box 390G
Email ANDREW@SPECTRUMSOLUTIONS.COM.AU
Reference G XYLAS BREAM S

Land Registry Document Identification

AW44725

STAMP DUTY:

Positive Covenant (13PC)

Jurisdiction NEW SOUTH WALES

Privacy Collection Statement

The information in this form is collected under statutory authority and used for the purpose of maintaining publicly searchable registers and indexes.

Land Title Reference	Part Land Affected?	Land Description
1/536401	N	

Applicant

SPECTRUM SOLUTIONS PTY LIMITED ABN 60152116393ACN 152116393
Registered company

Document Type

Positive Covenant (13PC)

The subscriber requests the Registrar-General to make any necessary recording in the Register to give effect to this instrument, in respect of the land or interest described above.

Attachment

See attached Dealing

Execution

The Certifier has retained the evidence supporting this Registry Instrument or Document.
The Certifier has taken reasonable steps to ensure that this Registry Instrument or Document is correct and compliant with relevant law and any Prescribed Requirement.

Executed on behalf of SPECTRUM SOLUTIONS PTY LIMITED
Signer Name KIM STAUB
Signer Organisation SPECTRUM SOLUTIONS PTY LIMITED
Signer Role PRACTITIONER CERTIFIER
Execution Date 17/04/2026



NSW Land Registry Services
Level 30, 175 Liverpool Street Sydney NSW 2000
GPO Box 15, Sydney NSW 2001
P (02) 8776 3575
E eConveyancingNSW@nswlrs.com.au
www.nswlrs.com.au

Lodgment Rules Exception Form

This form must be lodged with every Dealing with Exception and Miscellaneous Dealing (Miscellaneous Document) form, as defined in the Lodgment Rules.

Please accept this scanned paper dealing, as an eligible exception under Rules 5 or 10 of the Lodgment Rules (version 2), that has been lodged as either a:

1. Dealing with Exception form; or
2. Miscellaneous Dealing (Miscellaneous Document) form

Lodgment Rules exception number: * 41.1

**Insert, from the [Lodgment Rules exceptions list](#), the exception number relied on to use the Dealing with Exception form or Miscellaneous Dealing (Miscellaneous Document) form.*

The Lodgment Rules exception list is published on the Office of the Registrar General Lodgment Rules webpage:
<https://www.registrargeneral.nsw.gov.au/publications/lodgment-rules>

Form: 13PC
Release: 3-3

POSITIVE COVENANT

New South Wales

Section 88E(3) Conveyancing Act 1919

Leave this space clear. Affix additional
pages to the top left-hand corner.

PRIVACY NOTE: Section 31B of the Real Property Act 1900 (RP Act) authorises the Registrar General to collect the information required by this form for the establishment and maintenance of the Real Property Act Register. Section 96B RP Act requires that the Register is made available to any person for search upon payment of a fee, if any.

(A) **TORRENS TITLE**

1/536401

(B) **LODGED BY**

Document Collection Box	Name, Address, Telephone, and Customer Account Number if any	CODE
	Email:	PC
	Reference:	

(C) **REGISTERED PROPRIETOR**

Of the above land
Walker Ave Projects Pty Limited
ACN: 681 293 372

(D) **LESSEE MORTGAGEE or CHARGE**

Of the above land agreeing to be bound by this positive covenant

Nature of Interest	Number of Instrument	Name
Mortgage	AU880543	National Australia Bank Limited

(E) **PRESCRIBED AUTHORITY**

Within the meaning of section 88E(1) of the Conveyancing Act 1919
Bayside Council

- (F) The prescribed authority having imposed on the above land a positive covenant in the terms set out in annexure A hereto applies to have it recorded in the Register and certifies this application correct for the purposes of the Real Property Act 1900.

DATE

(G) **Execution by the prescribed authority** Delegated pursuant to Section 378 Local Govt Act 1993

I certify that an authorised officer of the prescribed authority who is personally known to me or as to whose identity I am otherwise satisfied signed this application in my presence.

Signature of witness: Peter Ward

Signature of authorised officer: Carine Elias

Name of witness: Peter Ward

Name of authorised officer: Carine Elias

Address of witness: 444 Princes Highway Rockdale

Position of authorised officer: Manager Development Services

(G) **Execution by the registered proprietor**

Electronic signatures were affixed by Carine Elias and Peter Ward

10 April 2026

Certified correct for the purposes of the Real Property Act 1900
by the company named below the common seal of which was
affixed pursuant to the authority specified and in the presence
of the authorised person(s) whose signature(s) appear(s) below.

Company:

Authority:

For Execution by the Registered Proprietor see page 4

Signature of authorised person:

Signature of authorised person:

Name of authorised person:

Name of authorised person:

Office held:

Office held:

(H) **Consent of the mortgagee**

The mortgagee under mortgage No. AU880543, agrees to be bound by this positive covenant.

I certify that the above mortgagee who is personally known to me or as to whose identity I am otherwise satisfied signed this application in my presence.

Signature of witness:

Signature of mortgagee:

Name of witness:

For execution by mortgagee see page 3

Address of witness:

* s117 RP Act requires that you must have known the signatory for more than 12 months or have signed identifying documentation.

ALL HANDWRITING MUST BE IN BLOCK CAPITALS

ANNEXURE "A" to POSITIVE COVENANT

PARTIES: Walker Ave Projects Pty Limited and Bayside Council
Title : 1/536401

1. Terms of Positive Covenant for On-Site Stormwater Management System

POSITIVE COVENANT FOR ON-SITE STORMWATER MANAGEMENT SYSTEM

The registered proprietor covenants as follows with the Council in respect to the structure erected on the land described as "on site stormwater management system" (which expression includes all infiltration units, ancillary gutters, pipes, drains, trash screens, pits, grates, tanks, chambers, basins, rainwater tanks, pumps, walls, kerbs, chambers, basins, orifice plates and surfaces designed to manage stormwater quantity and quality, including the temporary detention or permanent retention of stormwater storages) shown on plans approved by the Council (hereinafter called 'the system').

1. The Registered Proprietor will
 - a) permit stormwater to be managed by the system;
 - b) keep the system clean and free of silt, rubbish and debris;
 - c) maintain, renew and repair the whole or parts of the system so that it functions in a safe and efficient manner;
 - d) carry out the matters referred to in paragraphs (b) and (c) at the proprietor's expense;
 - e) not make any alterations to the system or elements thereof without prior consent in writing of the Council;
 - f) permit the Council or its authorised agents from time to time upon giving reasonable notice (but at any time and without notice in the case of an emergency) to enter and inspect the land for compliance with the requirements of this clause;
 - g) comply with the terms of any written notice issued by the Council in respect to the requirements of this clause within the time stated in the notice.
2. In the event of the registered proprietor failing to comply with the terms of any written notice served in respect of the matters in Clause 1 the Council or its authorised agents may enter with all necessary equipment and carry out any work required to ensure the safe and efficient operation of the system and recover from the registered proprietor the cost of liaison with the proprietor and the cost of carrying out the work, and if necessary, recover the amount due by legal proceedings (including legal costs and fees) and entry of a covenant charge on the land under Section 88F of the Conveyancing Act 1919. In carrying out any work under this clause, the Council shall take reasonable precautions to ensure that the land is disturbed as little as possible.

Name of Authority Empowered to Release, Vary or Modify the Positive Covenant is Bayside Council.

EXECUTION BY MORTGAGEE: See Page 3



Electronic initial by Carine Elias
Affixed 16/04/2026



Electronic initial by Hussein Chalich
affixed 16/04/2026



National Australia Bank Limited
ABN 12 004 044 937

CONSENT TO POSITIVE COVENANT

Annexure to Positive Covenant

THIS IS AN ANNEXURE TO POSITIVE COVENANT WITH WALKER AVE PROJECTS PTY LIMITED AS REGISTERED PROPRIETOR AND BAYSIDE COUNCIL AS PRESCRIBED AUTHORITY.

Torrens Title:

Folio Identifier 1/536401

NATIONAL AUSTRALIA BANK LIMITED ABN 12 004 044 937 as mortgagee by virtue of Mortgage Registered No. AU880543 hereby consents to the within Positive Covenant but without prejudice to and reserving all its rights powers and remedies under its Security.

DATED at Marrickville, NSW this 16th day of April 2026.

SIGNED SEALED AND DELIVERED)

for and on behalf of **NATIONAL**)

AUSTRALIA BANK LIMITED)

ABN 12 004 044 937 by its Attorney)

who holds the position of)

Level 3 Attorney under)

Power of Attorney Registered No. 39)

Book 4512 in the presence of:)

Witness Signature

Erin Carter

Print Name

85-95 Marrickville Rd, Marrickville

Attorney Signature

Tameka Turner

Print Name

ANNEXURE "A" to POSITIVE COVENANT

PARTIES: Walker Ave Projects Pty Limited and Bayside Council

EXECUTED BY

Walker Ave Projects Pty Limited
ACN 681 293 372

in accordance with section 127(1) of the
Corporations Act 2001 (Cwlth) by the
Authority of its Directors:

Hussein Chalich

.....
SOLE

Signature of Director/Company Secretary

Electronic Signature Affixed by

Hussein Chalich

on 11/03/2026 @ 3:05 PM

Hussein Chalich

.....
SOLE

Name of Director/Company Secretary (block
letters) *delete whichever is not applicable

EXECUTION BY BAYSIDE COUNCIL

Bayside Council by its authorised delegate pursuant to s.378 Local Government Act 1993.

Carine Elias

.....
Signature of Delegate:

.....
Carine Elias

.....
Name of Delegate:

I certify that I am an eligible witness and the
delegate signed in my presence:

.....
Peter Ward

.....
Name of Witness:

.....
Address of Witness:

.....
444 Princes Highway Rockdale

Electronic signatures were affixed by Carine Elias and Peter Ward
10 April 2026

25 March 2026

Our Ref: Certificate No. 88025

InfoTrack Pty Ltd
GPO BOX 4029
SYDNEY NSW 2001

Dear Sir/Madam

Following is your planning certificate issued under Section 10.7 (2) of the Environmental Planning and Assessment Act 1979.

This Section 10.7 Certificate has been issued by Bayside Council. Information contained within this Certificate is based on data from Council's records as they existed at the date of this Certificate.

SECTION 10.7 PLANNING CERTIFICATE

ISSUED TO:
InfoTrack Pty Ltd
GPO BOX 4029
SYDNEY NSW 2001

Fee: 71.00
Receipt No: 6116941
Receipt Date: 24 March 2026
Your Ref: CHALICH:112003

PROPERTY: 8 WALKER AVENUE, MASCOT NSW 2020

Lot 1 DP 536401

Should you have any enquiries, please contact the Council's Customer Service Centre on 1300 581 299.

Yours Sincerely,



David Smith
Manager Strategic Planning

Note: Where this certificate refers to a specific allotment (or allotments) within a strata plan the certificate is issued for the whole of the land within the strata plan, not just the specific allotment or allotments referred to, and any information contained in the certificate may relate to the whole or any part of the strata plan.

1 Names of relevant planning instruments and development control plans

(1) The name of each environmental planning instrument and development control plan that applies to the carrying out of development on the land.

Bayside Local Environmental Plan 2021

State Environmental Planning Policy	(Exempt and Complying Development Codes) 2008
State Environmental Planning Policy	(Housing) 2021
State Environmental Planning Policy	(Biodiversity and Conservation) 2021
State Environmental Planning Policy	(Resilience and Hazards) 2021
State Environmental Planning Policy	(Transport and Infrastructure) 2021
State Environmental Planning Policy	(Industry and Employment) 2021
State Environmental Planning Policy	(Resources and Energy) 2021
State Environmental Planning Policy	(Primary Production) 2021
State Environmental Planning Policy	(Precincts – Eastern Harbour City) 2021
State Environmental Planning Policy	(Planning Systems) 2021
State Environmental Planning Policy	(Sustainable Buildings) 2022

Bayside Development Control Plan 2022

(2) The name of each proposed environmental planning instrument and draft development control plan, which is or has been subject to community consultation or public exhibition under the Act, that will apply to the carrying out of development on the land.

EIE – Manufactured Home Estates, Caravan Parks, Camping Grounds and Movable Dwellings – Consultation Draft

EIE – Proposed reforms to outdoor dining on private land and live music venues

EIE – Protecting our trees – changes to deter illegal tree and vegetation clearing

EIE – Proposed changes to complying development for farm buildings, rural sheds and earthworks

EIE – Proposed Climate Change and Natural Hazards State Environmental Planning Policy

EIE – Establishing the Development Coordination Authority

No draft development control plan applies to the land.

In this section—

(1) *Planning Proposal* refers to proposed amendments to a Local Environmental Plan. Planning Proposals and draft development control plans are available to view on Council's website.

(2) *EIE* refers to an Explanation of Intended Effect for proposed amendments to State Environmental Planning Policies. EIEs are available to view on the NSW Planning Portal.

(3) Subsection (2) does not apply in relation to a proposed environmental planning instrument or draft development control plan if—

- (a) it has been more than 3 years since the end of the public exhibition period for the proposed instrument or draft plan, or**
- (b) for a proposed environmental planning instrument—the Planning Secretary has notified the council that the making of the proposed instrument has been deferred indefinitely or has not been approved.**

(4) In this section—

***proposed environmental planning instrument* means a draft environmental planning instrument and includes a planning proposal for a local environmental plan.**

2 Zoning and land use under relevant planning instruments

The following matters for each environmental planning instrument or draft environmental planning instrument that includes the land in a zone, however described—

- (a) the identity of the zone, whether by reference to—**
 - (i) a name, such as “Residential Zone” or “Heritage Area”, or**
 - (ii) a number, such as “Zone No 2 (a)”,**
- (b) the purposes for which development in the zone—**
 - (i) may be carried out without development consent, and**
 - (ii) may not be carried out except with development consent, and**
 - (iii) is prohibited,**

The following zone or zones apply under the environmental planning instrument or draft environmental planning instrument referred to in section 1(1):

Zone R2 Low Density Residential

1 Objectives of zone

- To provide for the housing needs of the community within a low density residential environment.
- To enable other land uses that provide facilities or services to meet the day to day needs of residents.
- To ensure land uses are carried out in a context and setting that minimises impact on the character and amenity of the area.
- To enable residential development in accessible locations to maximise public transport patronage and encourage walking and cycling.

2 Permitted without consent

Home-based child care; Home occupations

3 Permitted with consent

Attached dwellings; Bed and breakfast accommodation; Building identification signs; Business identification signs; Centre-based child care facilities; Community facilities; Dual occupancies; Dwelling houses; Educational establishments; Environmental protection works; Exhibition homes; Flood mitigation works; Group homes; Health consulting rooms; Home businesses; Home industries; Hostels; Neighbourhood shops; Oyster aquaculture; Places of public worship; Pond-based aquaculture; Recreation areas; Respite day care centres; Roads; Secondary dwellings; Semi-detached dwellings; Seniors housing; Tank-based aquaculture; Water supply systems

4 Prohibited

Any other development not specified in item 2 or 3

(c) whether additional permitted uses apply to the land,

Yes

(d) whether development standards applying to the land fix minimum land dimensions for the erection of a dwelling house on the land and, if so, the fixed minimum land dimensions,

No

(e) whether the land is in an area of outstanding biodiversity value under the *Biodiversity Conservation Act 2016*,

No

(f) whether the land is in a conservation area, however described,

No

(g) whether an item of environmental heritage, however described, is located on the land.

No

3 Contributions plans

(1) The name of each contributions plan under the Act, Division 7.1 applying to the land, including draft contributions plans.

City of Botany Section 7.11 Development Contributions Plan 2016
City of Botany Bay Section 94A Development Contributions Plan 2016

- (2) If the land is in a region within the meaning of the Act, Division 7.1, Subdivision 4—
- (a) the name of the region, and
 - (b) the name of the Ministerial planning order in which the region is identified.

The land is within the Greater Sydney region. The *Environmental Planning and Assessment (Housing and Productivity Contribution) Order 2024* applies to this land.

- (3) If the land is in a special contributions area to which a continued 7.23 determination applies, the name of the area.
- (4) In this section—
- continued 7.23 determination* means a 7.23 determination that—
 - (a) has been continued in force by the Act, Schedule 4, Part 1, and
 - (b) has not been repealed as provided by that part.

The land is not within a special contributions area to which a continued 7.23 determination applies.

Note: The Act, Schedule 4, Part 1 contains other definitions that affect the interpretation of this section.

4 Complying development

- (1) If the land is land on which complying development may be carried out under each of the complying development codes under *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*, because of that Policy, clause 1.17A(1)(c)–(e), (2), (3) or (4), 1.18(1)(c3) or 1.19.
- (2) If complying development may not be carried out on the land because of 1 of those clauses, the reasons why it may not be carried out under the clause.
- (3) If the council does not have sufficient information to ascertain the extent to which complying development may or may not be carried out on the land, a statement that—
- (a) a restriction applies to the land, but it may not apply to all of the land, and
 - (b) the council does not have sufficient information to ascertain the extent to which complying development may or may not be carried out on the land.
- (4) If the complying development codes are varied, under that Policy, clause 1.12, in relation to the land.

Housing Code

Complying Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Inland Code

Not applicable

Low Rise Housing Diversity Code

Complying Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Pattern Book Development Code

Complying Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Rural Housing Code

Complying Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Greenfield Housing Code

Not applicable

Industrial and Business Buildings Code

Complying Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Housing Alterations Code

Complying Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

General Development Code

Complying Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Industrial and Business Alterations Code

Complying Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Container Recycling Facilities Code

Complying Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Subdivisions Code

Complying Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Demolition Code

Complying Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Fire Safety Code

Complying Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Notes:

- (1) If a reference is made to “part of the land”, Complying Development **may be** carried out on the portion of the land not subject to such a restriction.
 - (2) This certificate only addresses matters raised in Clause 1.17A (1) (c) to (e), (2), (3) and (4), 1.18 (1)(c3) and 1.19 of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*. It is your responsibility to ensure that you comply with any other general requirements of the *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.
-

5 Exempt development

- (1) If the land is land on which exempt development may be carried out under each of the exempt development codes under *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*, because of that Policy, clause 1.16(1)(b1)–(d) or 1.16A.
- (2) If exempt development may not be carried out on the land because of 1 of those clauses, the reasons why it may not be carried out under the clause.
- (3) If the council does not have sufficient information to ascertain the extent to which exempt development may or may not be carried out on the land, a statement that—
 - (a) a restriction applies to the land, but it may not apply to all of the land, and
 - (b) the council does not have sufficient information to ascertain the extent to which exempt development may or may not be carried out on the land.
- (4) If the exempt development codes are varied, under that Policy, clause 1.12, in relation to the land.

General Exempt Development Code

Exempt Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Advertising and Signage Exempt Development Code

Exempt Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

Temporary Uses and Structures Exempt Development Code

Exempt Development **may be** carried out on the land under the above code, subject to assessment against requirements of *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008*.

6 Affected building notices and building product rectification orders

- (1) Whether the council is aware that—
 - (a) an affected building notice is in force in relation to the land, or

- (b) a building product rectification order is in force in relation to the land that has not been fully complied with, or
- (c) a notice of intention to make a building product rectification order given in relation to the land is outstanding.

- (2) In this section—
affected building notice has the same meaning as in the *Building Products (Safety) Act 2017*, Part 4.

building product rectification order has the same meaning as in the *Building Products (Safety) Act 2017*.

Council **is not aware of an issue** of a notice of intention or order pertaining to building product rectification works (Building Products Safety Act 2017).

7 Land reserved for acquisition

Whether an environmental planning instrument or proposed environmental planning instrument referred to in section 1 makes provision in relation to the acquisition of the land by an authority of the State, as referred to in the Act, section 3.15.

The land **is not** subject to acquisition by an authority of the State.

8 Road widening and road realignment

Whether the land is affected by road widening or road realignment under—

- (a) the *Roads Act 1993*, Part 3, Division 2, or

No

Note: Land affected by any road widening or road realignment under the *Roads Act 1993*, Part 3, Division 2 would be listed in the NSW Government Gazette.

- (b) An environmental planning instrument, or

No

- (c) A resolution of the council

No

Note: Information provided in this section is provided to the best of Council's knowledge.

9 Flood related development controls

- (1) If the land or part of the land is within the flood planning area and subject to flood related development controls.

The land **is not** within the flood planning area.

- (2) If the land or part of the land is between the flood planning area and the probable maximum flood and subject to flood related development controls.

Yes – The land or part of the land is between the flood planning area and the probable maximum flood.

Yes – The land is subject to relevant flood related development controls.

- (3) In this section—
flood planning area has the same meaning as in the Flood Risk Management Manual.

Flood Risk Management Manual means the Flood Risk Management Manual, ISBN 978-1-923076-17-4, published by the NSW Government in June 2023.

probable maximum flood has the same meaning as in the *Flood Risk Management Manual*.

10 Council and other public authority policies on hazard risk restrictions

- (1) Whether any of the land is affected by an adopted policy that restricts the development of the land because of the likelihood of land slip, bush fire, tidal inundation, subsidence, acid sulfate soils, contamination, aircraft noise, salinity, coastal hazards, sea level rise or another risk, other than flooding.
- (2) In this section—
adopted policy means a policy adopted—
(a) by the council, or
(b) by another public authority, if the public authority has notified the council that the policy will be included in a planning certificate issued by the council.

No

11 Bush fire prone land

- (1) If any of the land is bush fire prone land, designated by the Commissioner of the NSW Rural Fire Service under the Act, section 10.3, a statement that all or some of the land is bush fire prone land.
- (2) If none of the land is bush fire prone land, a statement to that effect.

The land is **not** bush fire prone land.

12 Loose-fill asbestos insulation

If the land includes residential premises, within the meaning of the *Home Building Act 1989*, Part 8, Division 1A, that are listed on the Register kept under that Division, a statement to that effect.

The land is **not** so listed.

Note: Information provided in this section is to the best of Council's knowledge. A Loose-fill Asbestos Insulation Register is available on the NSW Planning website.

13 Mine subsidence

Whether the land is declared to be a mine subsidence district within the meaning of the *Coal Mine Subsidence Compensation Act 2017*.

No

14 Paper subdivision information

- (1) The name of a development plan adopted by a relevant authority that –
 - (a) applies to the land, or
 - (b) is proposed to be subject to a ballot.
- (2) The date of a subdivision order that applies to the land.
- (3) Words and expressions used in this section have the same meaning as in this Regulation, Part 10 and the Act, Schedule 7.

The land is **not** so affected.

15 Property vegetation plans

If the land is land in relation to which a property vegetation plan is approved and in force under the *Native Vegetation Act 2003*, Part 4, a statement to that effect, but only if the council has been notified of the existence of the plan by the person or body that approved the plan under that Act.

The land is **not** land to which a property vegetation plan applies.

16 Biodiversity stewardship sites

If the land is a biodiversity stewardship site under a biodiversity stewardship agreement under the *Biodiversity Conservation Act 2016*, Part 5, a statement to that effect, but only if the council has been notified of the existence of the agreement by the Biodiversity Conservation Trust.

Note— Biodiversity stewardship agreements include biobanking agreements under the *Threatened Species Conservation Act 1995*, Part 7A that are taken to be biodiversity stewardship agreements under the *Biodiversity Conservation Act 2016*, Part 5.

The land is **not** subject to any such agreement.

17 Biodiversity certified land

If the land is biodiversity certified land under the *Biodiversity Conservation Act 2016*, Part 8, a statement to that effect.

Note: Biodiversity certified land includes land certified under the *Threatened Species Conservation Act 1995*, Part 7AA that is taken to be certified under the *Biodiversity Conservation Act 2016*, Part 8.

The land is **not** biodiversity certified land.

18 Orders under *Trees (Disputes Between Neighbours) Act 2006*

Whether an order has been made under the *Trees (Disputes Between Neighbours) Act 2006* to carry out work in relation to a tree on the land, but only if the council has been notified of the order.

No

Note: Notification of such an order in this section will only be provided if Council has been notified. Orders made under the *Trees (Disputes Between Neighbours) Act 2006* may be available on the NSW Case Law website.

19 Annual charges under Local Government Act 1993 for coastal protection services that relate to existing coastal protection works

- (1) If the *Coastal Management Act 2016* applies to the council, whether the owner, or a previous owner, of the land has given written consent to the land being subject to annual charges under the *Local Government Act 1993*, section 496B, for coastal protection services that relate to existing coastal protection works.
- (2) In this section—
existing coastal protection works has the same meaning as in the *Local Government Act 1993*, section 553B.

Note— Existing coastal protection works are works to reduce the impact of coastal hazards on land, such as seawalls, revetments, groynes and beach nourishment, that existed before 1 January 2011.

The land is **not** subject to annual charges.

20 Western Sydney Aerotropolis

Whether under *State Environmental Planning Policy (Precincts—Western Parkland City) 2021*, Chapter 4 the land is—

- (a) in an ANEF or ANEC contour of 20 or greater, as referred to in that Chapter, section 4.17, or
- (b) shown on the Lighting Intensity and Wind Shear Map, or
- (c) shown on the Obstacle Limitation Surface Map, or
- (d) in the “public safety area” on the Public Safety Area Map, or
- (e) in the “3 kilometre wildlife buffer zone” or the “13 kilometre wildlife buffer zone” on the Wildlife Buffer Zone Map.

The land is **not** subject to the *State Environmental Planning Policy (Precincts—Western Parkland City) 2021*, Chapter 4.

21 Development consent conditions for seniors housing

If *State Environmental Planning Policy (Housing) 2021*, Chapter 3, Part 5 applies to the land, any conditions of a development consent granted after 11 October 2007 in relation to the land that are of the kind set out in that Policy, clause 88(2).

Not applicable

Note: Conditions of development consent are available on Bayside Council’s DA Tracker webpage.

22 Site compatibility certificates and development consent conditions for affordable rental housing

- (1) Whether there is a current site compatibility certificate under *State Environmental Planning Policy (Housing) 2021*, or a former site compatibility certificate, of which the council is aware, in relation to proposed development on the land and, if there is a certificate—
- (a) the period for which the certificate is current, and
 - (b) that a copy may be obtained from the Department.

Not applicable

Note: Site Compatibility Certificates are available on the NSW Planning Portal.

- (2) If *State Environmental Planning Policy (Housing) 2021*, Chapter 2, Part 2, Division 1 or 5 applies to the land, any conditions of a development consent in relation to the land that are of a kind referred to in that Policy, section 21(1) or 40(1).

Not applicable

Note: Conditions of development consent are available on Bayside Council's DA Tracker webpage.

- (3) Any conditions of a development consent in relation to land that are of a kind referred to in *State Environmental Planning Policy (Affordable Rental Housing) 2009*, clause 17(1) or 38(1).

Not applicable

Note: Conditions of development consent are available on Bayside Council's DA Tracker webpage.

- (4) In this section—
former site compatibility certificate means a site compatibility certificate issued under *State Environmental Planning Policy (Affordable Rental Housing) 2009*.

23 Water or sewerage services

If water or sewerage services are, or are to be provided to the land under the *Water Industry Competition Act 2006*, a statement to that effect.

Note— A public water utility may not be the provider of some or all of the services to the land. If a water or sewerage service is provided to the land by a licensee under the *Water Industry Competition Act 2006*, a contract for the service will be deemed to have been entered into between the licensee and the owner of the land. A register relating to the approvals and licenses necessary for the provision of water or sewerage services under the *Water Industry Competition Act 2006* is maintained by the Independent Pricing and Regulatory Tribunal and provides information about the areas serviced, or to be serviced under that Act. Purchasers should check the register to understand who will service the property. Outstanding charges for water or sewerage services provided under the *Water Industry Competition Act 2006* become the responsibility of the purchaser.

A licence **does not exist** under the *Water Industry Competition Act 2006* to provide water

and/or sewerage services to the land.

24 Special entertainment precincts

Whether the land or part of the land is in a special entertainment precinct within the meaning of the *Local Government Act 1993*, section 202B.

No

25 Interim development in future infrastructure corridors

If *State Environmental Planning Policy (Transport and Infrastructure) 2021*, section 4.7A applies to the land, a condition of a development consent granted in relation to the land that is a condition of the concurrence granted by Transport for NSW under that section.

No

Section 59(2) Contaminated Land Management Act 1997

Note: The following matters are prescribed by section 59 (2) of the *Contaminated Land Management Act 1997* as additional matters to be specified in a planning certificate.

(a) that the land to which the certificate relates is significantly contaminated land within the meaning of that Act—if the land (or part of the land) is significantly contaminated land at the date when the certificate is issued;

Not applicable

(b) that the land to which the certificate relates is subject to a management order within the meaning of that Act—if it is subject to such an order at the date when the certificate is issued;

Not applicable

(c) that the land to which the certificate relates is the subject of an approved voluntary management proposal within the meaning of that Act—if it is the subject of such an approved proposal at the date when the certificate is issued;

Not applicable

(d) that the land to which the certificate relates is subject to an ongoing maintenance order within the meaning of that Act—if it is subject to such an order at the date when the certificate is issued; and

Not applicable

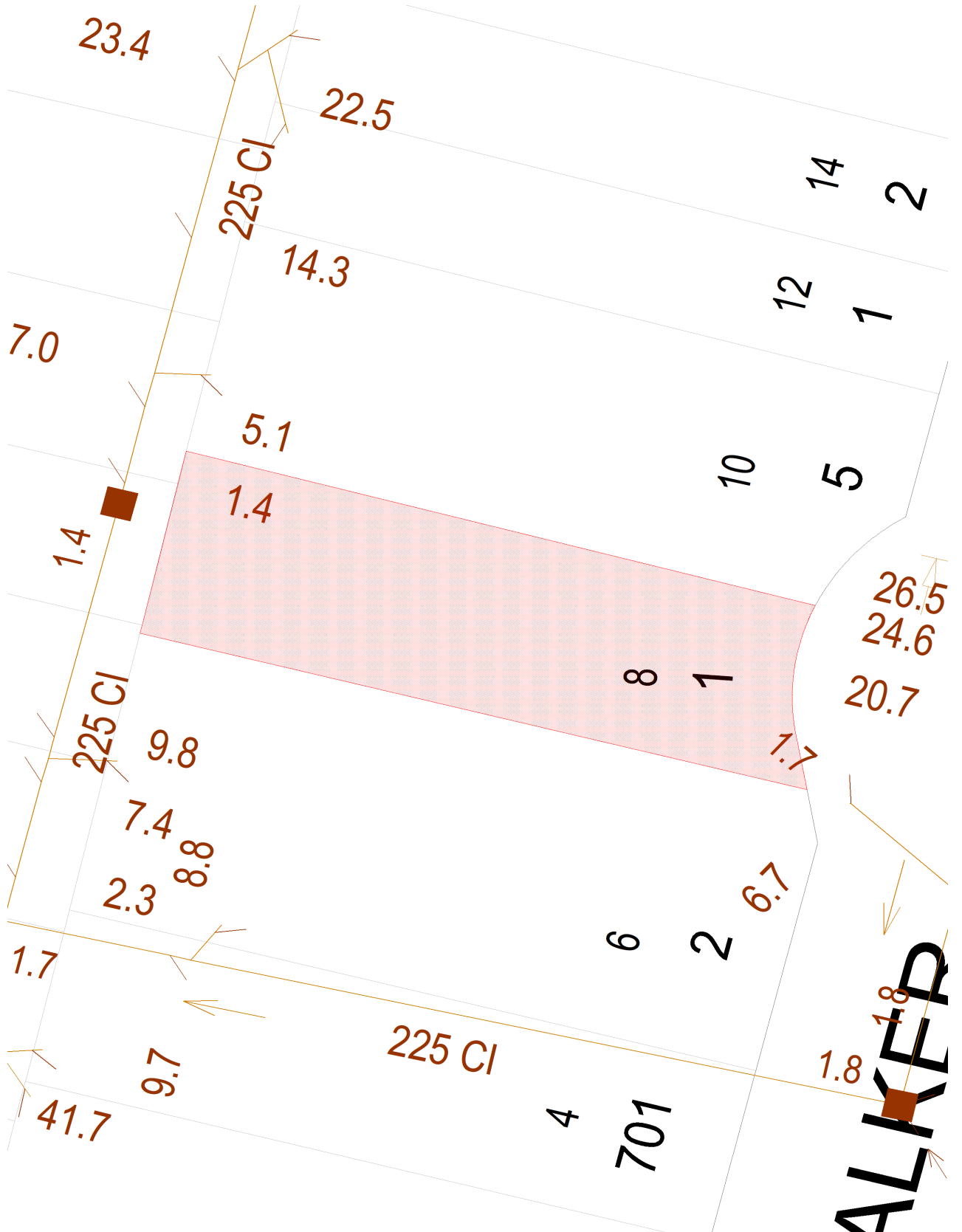
(e) that the land to which the certificate relates is the subject of a site audit statement within the meaning of that Act—if a copy of such a statement has been provided at any time to the local authority issuing the certificate.

Not applicable

[End of information under section 10.7 (2)]

Service Location Print

Application Number: 8005123217



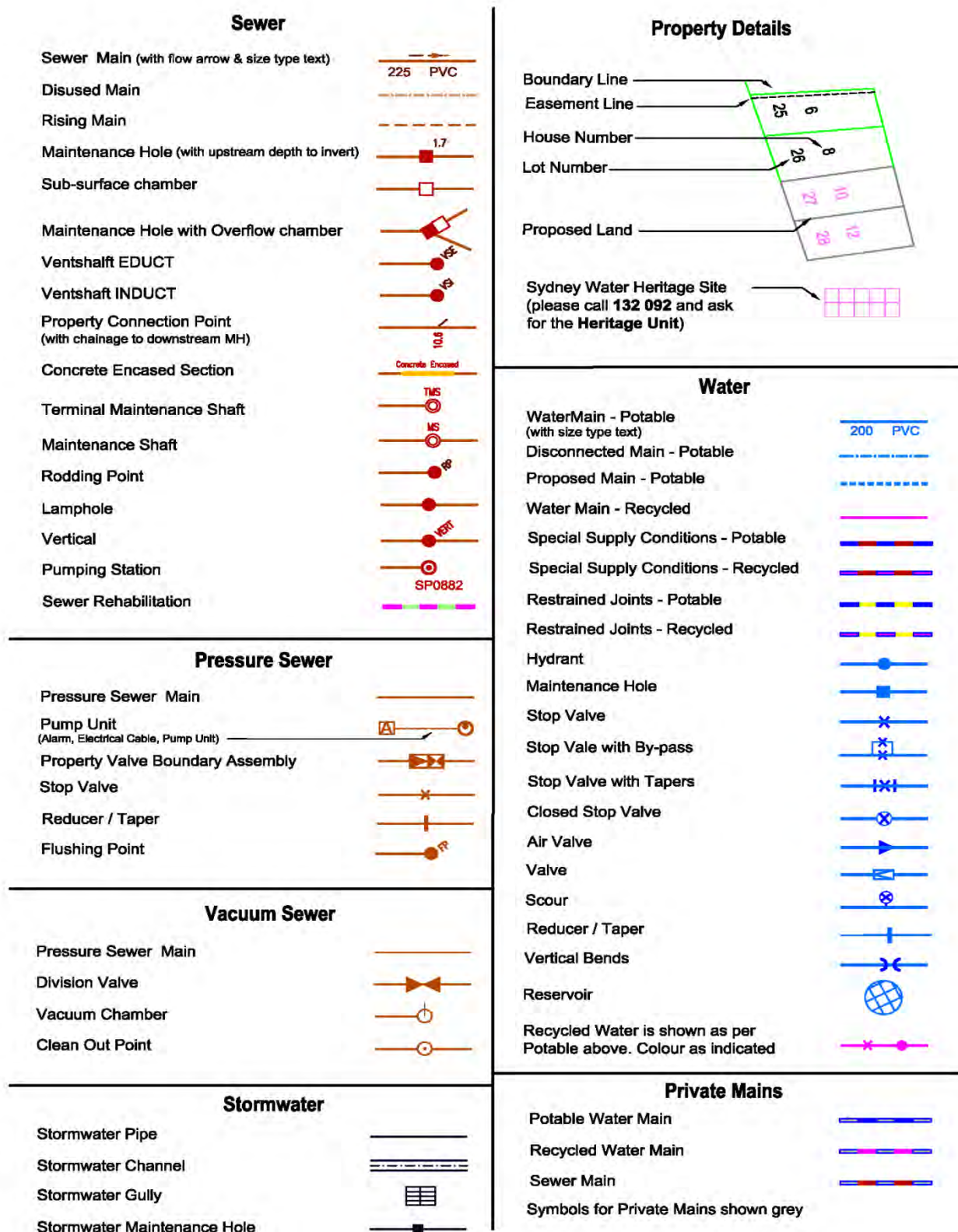
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Disclaimer

The information on this print shows if we provide any water, wastewater or stormwater services to this property. It may not be accurate or to scale. If you'd like to see the location of private wastewater pipes on the property, please buy a **Sewer service diagram**.

Asset Information

Legend



Disclaimer

The information on this print shows if we provide any water, wastewater or stormwater services to this property. It may not be accurate or to scale. If you'd like to see the location of private wastewater pipes on the property, please buy a **Sewer service diagram**.

Pipe Types

ABS	Acrylonitrile Butadiene Styrene	AC	Asbestos Cement
BRICK	Brick	CI	Cast Iron
CICL	Cast Iron Cement Lined	CONC	Concrete
COPPER	Copper	DI	Ductile Iron
DICL	Ductile Iron Cement (mortar) Lined	DIPL	Ductile Iron Polymeric Lined
EW	Earthenware	FIBG	Fibreglass
FL BAR	Forged Locking Bar	GI	Galvanised Iron
GRP	Glass Reinforced Plastics	HDPE	High Density Polyethylene
MS	Mild Steel	MSCL	Mild Steel Cement Lined
PE	Polyethylene	PC	Polymer Concrete
PP	Polypropylene	PVC	Polyvinylchloride
PVC - M	Polyvinylchloride, Modified	PVC - O	Polyvinylchloride, Oriented
PVC - U	Polyvinylchloride, Unplasticised	RC	Reinforced Concrete
RC-PL	Reinforced Concrete Plastics Lined	S	Steel
SCL	Steel Cement (mortar) Lined	SCL IBL	Steel Cement Lined Internal Bitumen Lined
SGW	Salt Glazed Ware	SPL	Steel Polymeric Lined
SS	Stainless Steel	STONE	Stone
VC	Vitrified Clay	WI	Wrought Iron
WS	Woodstave		

Further Information

Please consult the Dial Before You Dig enquiries page on the Sydney Water website.

For general enquiries please call the Customer Contact Centre on 132 092

In an emergency, or to notify Sydney Water of damage or threats to its structures, call 13 20 90 (24 hours, 7 days)

Disclaimer

The information on this print shows if we provide any water, wastewater or stormwater services to this property. It may not be accurate or to scale. If you'd like to see the location of private wastewater pipes on the property, please buy a **Sewer service diagram**.

Policy No: HBCF25036118

Policy Date: 20/06/2025

A contract of insurance complying with sections 92 and 96 of the **Home Building Act 1989** (the Act) has been issued by Insurance and Care NSW (icare) for the insurer, the NSW Self Insurance Corporation (Home Building Compensation Fund). icare provides services to the NSW Self Insurance Corporation under section 10 of the **State Insurance and Care Governance Act 2015**.

Period of Insurance	The contract of insurance provides cover for both the construction period and the warranty period.
In respect of	H01 - New Dwelling Construction
Description of construction as advised by builder^	Two storey residential dwelling with addition of a swimming pool and associated landscaping.
At	8 Walker Avenue Mascot New South Wales 2020
Site plan number^	NA
Site plan type^	NA
Homeowner	WALKER AVE PROJECTS PTY LTD
Carried out by	CB Wildes Pty Ltd
Licence number	345309C
Builder job number^	1090
Contract amount^	\$506,000.00
Contract date^	17/06/2025
Premium paid	\$5,603.95
Cost of additional products or services under contract	Nil - no additional services.
Price (including GST and Stamp Duty) Note: The total price does not include any brokerage or other costs to arrange the insurance contract.	\$6,719.14

^Additional information

Subject to the Act, the Home Building Regulation 2014 and the conditions of the insurance contract, cover will be provided to a beneficiary described in the contract and successors in title to the beneficiary. This Certificate is to be read in conjunction with the policy wording current as at the policy date and available at the icare website at www.icare.nsw.gov.au

There are absolute limits on what you can be paid under this insurance, both in respect of non-completion of the works and as a total policy limit. Please review the policy wording closely for those limits. In summary, the total limit of the policy in any case (including the non-completion of building work, defective building work and any other costs covered by the policy) is \$340,000 per dwelling, with a sub-limit in respect of the non-completion of the building work of 20% of the contract price (as varied). This policy will never pay more than 20% of the contract price (as varied) in respect of the noncompletion of building work, and never more than \$340,000 per dwelling for all loss, damage, costs and liabilities covered.

Certificate No: HBCF25036118

Issued on: 20/06/2025



Nathan Agius, General Manager, General Lines Underwriting
Signed on behalf of the insurer

This certificate may only be cancelled within two (2) years of the policy date and only where no work has commenced and no monies have been paid under the building contract.

IMPORTANT NOTE Your contractor must give you either: (a) a certificate of combined cover OR (b) 2 certificates, one covering construction period cover and a second certificate covering the warranty period for the work.



Building Compensation Fund Ltd
For Information

C250199-01
08/09/2025
Scan this QR code to check the validity of your HBCF policy on the Home Building Compensation (HBC) Check database.
Cameron James 2000

NSW Swimming Pool Register

Certificate of Registration

Section 30C – Swimming Pools Act 1992

Pool No:	R-0434513
Property Address:	8 WALKER AV, MASCOT NSW 2020
Date of Registration:	26/03/2026
Type of Pool:	An outdoor pool that is not portable or inflatable
Type of Dwelling:	Residential - maximum of two dwellings on one property

The swimming pool at the above premises has been registered in accordance with Section 30B of the Swimming Pools Act 1992.

The issue of this certificate does not negate the need for regular maintenance of the pool to ensure it is compliant with the Swimming Pools Act 1992.

Please remember:

- Children should be supervised by an adult at all times when using your pool
- Regular pool barrier maintenance
- Pool gates must be closed at all times
- Don't place climbable articles against your pool barrier
- Remove toys from the pool area after use

You may be required to obtain a Certificate of Compliance before you lease or sell your property.

Contact your council for further information.

This is NOT a Certificate of Compliance

OCCUPATION CERTIFICATE C250199-02

Issued under Part 6, Divisions 6.2 & 6.3 of the Environmental Planning and Assessment Act 1979

APPLICANT DETAILS

Applicant:	Walker Avenue Projects (Hussein Chalich)
Address:	61 Miles Street, Mascot NSW 2020
Phone:	9669 1444
Email:	kar@hbuilt.com.au

OWNER/S DETAILS

Name of the person having benefit of the development consent:	Walker Avenue Projects (Hussein Chalich)
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RELEVANT CONSENTS/APPROVALS

Consent Authority / Local Government Area:	Bayside Council
Development Consent registration number/s, (incl. modifications):	DA-2025/71
Date/s of issue relevant development consent/s, (incl. modifications):	01/09/2025
Construction Certificate number/s:	C250199-01
Construction Certificate date/s issued:	08/09/2025

PROPOSAL

Address of Development:	8 Walker Avenue, Mascot NSW 2020
Building Code of Australia classification of the building <u>to which this certificate relates</u>:	Class 1a, 10a
Scope of building works covered by this certificate:	Construction of a 2 storey dwelling house with inground swimming pool, front fence, landscaping & tree removal
Attachments:	Schedule 1
This certificate applies to:	Whole building
This certificate relates to:	Occupation or use of a new building
Condition/s (Pursuant of section 53 of EP&A (Development Certification and Fire Safety) Regulation 2021)	N/A

PRINCIPAL CERTIFIER

Registered Certifier's name:	Cameron James
Registration body & Registration number:	NSW Fair Trading BDC2000

DETERMINATION

Approval Date:	30/04/2026
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I, Cameron James, the registered certifier, state that:

- if the certificate is for a part of a new building or partially completed building—the health and safety of the occupants of the building have been considered, and
- a current development consent is in force for the building, and
- if building work has been carried out—a current construction certificate has been issued in relation to the building work plans and specifications,
- the building is suitable for occupation or use in accordance with its classification under the Building Code of Australia, and
- a fire safety certificate has been issued, if a fire safety schedule was required under Part 10, and
- a report from the Fire Commissioner has been considered, if required.



Cameron James

SCHEDULE 1: DOCUMENTATION REQUIRED TO ISSUE OCCUPATION CERTIFICATE

Mandatory Inspections:

CRITICAL STAGE INSPECTIONS Section 6.5 of the Act & Clause 61 of the Environmental Planning and Assessment (Development Certification and Fire Safety) Regulation 2021				
In the case of a class 1 or 10 building	Critical Stage Inspections			Inspection Date/s
<i>At the commencement of the building work, (Pre CC/CDC Inspection) and</i>	Yes ☒	Missed ☐	N/A ☐	01/09/2025
<i>After excavation for, and prior to the placement of any footings, and</i>	Yes ☒	Missed ☐	N/A ☐	19/09/2025
<i>Prior to pouring any in-situ reinforced concrete building element, and</i>	Yes ☒	Missed ☐	N/A ☐	19/09/2025 27/10/2025
<i>Prior to covering of the framework for any floor, wall, roof or other building element, and</i>	Yes ☒	Missed ☐	N/A ☐	11/11/2025
<i>Prior to covering waterproofing in any wet areas, and</i>	Yes ☒	Missed ☐	N/A ☐	28/11/2025
<i>Prior to covering any stormwater drainage connections, and</i>	Yes ☒	Missed ☐	N/A ☐	12/03/2026
<i>In the case of a swimming pool, as soon as practicable after the barrier has been erected, and</i>	Yes ☒	Missed ☐	N/A ☐	01/04/2026
<i>After the building work has been completed and prior to any occupation certificate</i>	Yes ☒	Missed ☐	N/A ☐	01/04/2026

Supporting Documentation:

1. Application for Occupation Certificate dated 26th March 2026
2. Structural Adequacy – Capital Engineering Consultants, dated 26th March 2026
3. External Wall – CB Wildes, dated 19th March 2026
4. Smoke Alarms – Greencomm Energy, dated 24th March 2026
5. BASIX Compliance – CB Wildes dated 26th March 2026
6. Mechanical – Perfect Air Solutions dated 25th March 2026
7. Plumbing – Stylish Plumbing Pty Ltd, dated 11th March 2026
8. Electrical – Greencomm Energy dated 24th March 2026
9. Glass Fencing (Balustrade) – Stainless Group Pty Ltd, dated 9th April 2026
10. Glass Fencing (Pool Fence) – Silver Stone Hardware Pty Ltd, dated 23rd March 2026
11. Waterproofing (Internal & External) – Allpro Waterproofing Pty Ltd, dated 12th March 2026
12. Glazing (Windows & Doors) – Logikal Façade Solutions Pty Ltd, dated 10th March 2026
13. Gazing (Shower Screens) – Kensington Glass Services, dated 13th April 2026
14. Termite – Rays Pest Control dated 23rd September 2025
15. Landscaping – CB Wildes, dated 26th March 2026
16. Site Survey – Harrison Friedman & Associates Pty Ltd, dated 2nd March 2026
17. Builders Completion / Design – CB Wildes, dated 26th March 2026
18. NSW Swimming Pool Registration, dated 26th March 2026

Conditions of Consent:

19. Condition 13,39: Acoustic – Blackett Acoustics, dated 28th April 2026
20. Condition 19, 30, 35,40,46: Council Completion Letter – Bayside Council, dated 25th March 2026
21. Condition 28: Site Survey – Harrison Friedman & Associates Pty Ltd, dated 2nd March 2026
22. Condition 41, 42,43: Stormwater – PAZ Consulting Pty Ltd, dated 20th March 2026
23. Condition 44: WAE Plan – David Treman, dated 9th March 2026
24. Condition 54: Rainwater Tank - Stylish Plumbing Pty Ltd dated 11th March 2026